

COMPLETE LEARNING SESSION

Directive Principles of State Policy - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Directive Principles of State Policy - Complete Learning Session

Scope: Complete Part IV architecture and Articles 36-51; Article 37 legal nature; non-textual classification; direct Part IV amendments; the necessary Fundamental Rights-DPSP relationship; Article 31C's current scope; governance, implementation, NALSA and Article 44. Detailed Fundamental Rights remain Topic 7, Fundamental Duties Topic 9, amendment doctrine Topic 10 and sector outcomes with their specialist topics.

SOURCE, STATUS AND NON-FABRICATION CONTROL

- **Canonical sequence used:** basic\Directive-Principles.md -> advanced\08_Directive-Principles.md -> 08_Directive-Principles_Complete-Topic-Package.md -> official syllabus/audit/verified PYQ ledgers -> OCR-searchable local polity books -> constitutional text, amendment Acts, legislation and official Supreme Court judgments.
- **Local OCR checks:** books\Indian Polity by M Laxmikant.pdf, Directive Principles chapter beginning at PDF page 214; books\Courseware on Indian Polity by M Laxmikanth.pdf, corresponding chapter beginning at PDF page 227.
- **Official legal control, checked 7 September 2026:** Legislative Department Constitution edition available as on 1 May 2026; official First, Fourth and Twenty-fifth Amendment texts; official Supreme Court judgments in *Champakam Dorairajan*, *Golaknath*, *Kesavananda Bharati*, *Minerva Mills*, *Rajendra N. Shah* and *Property Owners Association*; Legal Services Authorities Act, 1987 and NALSA material.
- **Current holding discipline:** *Property Owners Association v. State of Maharashtra*, 5 November 2024, confirms survival of the original Article 31C shield for genuine Article 39(b)/(c) laws against Articles 14 and 19. Courts retain nexus and basic-structure review. Some private resources may qualify contextually; not every private asset is automatically a material resource of the community.
- **PYQ key discipline:** exact audited question wording is reproduced. Only UPSC 2025 Prelims Q55 prints the held final local-official answer letter. Six earlier objective answer letters are withheld.
- **No false completion claims:** a law, institution, scheme or budget illustrates implementation but never proves universal fulfilment of a directive.

ROADMAP

Stage	Sessions	Learning outcome
Foundation	1-2	Origin, Articles 36-37, legal nature and accountability
Core constitutional text	3-7	Every clause, classification and precise amendment chronology
Synthesis	8-10	FR-DPSP phases, Article 31C and implementation/governance
Applied core	11-14	Legal aid/NALSA, Lok Adalats, Article 44 and location discipline
Evaluation	15	Criticism, utility, constraints and answer verdict
Optional Advanced	after practice	Positive constitutionalism, federal welfare design and outcome review

MANDATORY ORIGIN AND DOCTRINE TIMELINE

Year	Authority	Exact Topic 8 significance
1937	Irish Constitution	Immediate comparative source; its model had a Spanish antecedent.
1951	<i>Champakam Dorairajan</i>	Enforceable Fundamental Rights prevailed in direct conflict; First Amendment response followed.
1951	First Amendment	Added Article 15(4), Article 31A and Article 31B/Ninth Schedule architecture for social and agrarian reform.

Year	Authority	Exact Topic 8 significance
1955	Fourth Amendment	Strengthened the property/land-reform protection response and added Ninth Schedule laws; it did not insert Article 31C.
1967	<i>I.C. Golaknath</i>	Temporarily denied Parliament power to abridge Fundamental Rights by amendment.
1971	Twenty-fourth Amendment	Affirmed constituent amendment power, later limited by basic structure.
1971	Twenty-fifth Amendment	Inserted Article 31C for Article 39(b)/(c) and attempted to make the declaration conclusive.
1973	<i>Kesavananda Bharati</i>	Basic structure limited amendment; the substantive 31C shield survived, judicial-review ouster failed.
1976	Forty-second Amendment	Recast Article 39(f), inserted 39A/43A/48A and attempted to extend 31C to all DPSPs.
1978	Forty-fourth Amendment	Inserted Article 38(2).
1980	<i>Minerva Mills</i>	Invalidated the all-DPSP extension; harmony and balance between Parts III-IV is basic structure.
2002	Eighty-sixth Amendment	Inserted Article 21A and recast Article 45 for children below six.
2011	Ninety-seventh Amendment	Inserted Article 43B; <i>Rajendra N. Shah</i> later preserved it while limiting Part IXB's State operation.
2024	<i>Property Owners Association</i>	Confirmed narrow Article 31C survival and contextual Article 39(b) analysis.

BASIC LEARNING SESSION

SESSION 1 - PART IV AS CONSTITUTIONAL ARCHITECTURE

Stage: Foundation

VISUAL FIRST

PART IV (ARTICLES 36-51) -> ARTICLE 36 ADDRESSEE -> ARTICLE 37 DUTY -> LAW / BUDGET / ADMINISTRATION -> WELFARE OUTCOMES

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part IV is the Constitution's programme for directing public power toward social, economic and political justice.

Technical definition: Articles 36 and 37 identify the State, deny direct judicial enforcement, declare the principles fundamental in governance and impose a State duty in law-making.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part IV directs the same public power restrained by Fundamental Rights toward a welfare and distributive constitutional order.

MUST-WRITE KEYWORDS

Part IV; Articles 36-51; Article 36; Article 37; welfare State; social and economic democracy

Source, lineage and constitutional purpose

- [FACT] Articles 36-51 form Part IV, titled **Directive Principles of State Policy**.
- [FACT] The framers borrowed the model from Ireland; Ireland had drawn on Spain.

- [LIMIT] The borrowing claim concerns the constitutional device of non-justiciable directives. It does not mean that every substantive principle in Articles 38-51 was copied from Ireland; the programme was adapted to India's social, economic and institutional aims.
- [FACT] Ambedkar described the directives as a novel feature and compared them to the 1935 Act's Instrument of Instructions. The critical difference is democratic: they now guide constitutionally responsible legislatures and executives rather than colonial governors acting under imperial instructions.
- [FACT] Granville Austin described Fundamental Rights and Directive Principles together as the **Conscience of the Constitution**.
- [ANALYSIS] The directives are not a miscellaneous wish list. They define the social purpose for which democratic power should be used: reducing inequality, protecting labour and children, enabling education and legal aid, institutionalising self-government, reforming personal law, preserving ecology and promoting peace.

Welfare state versus police state

Police-state orientation	Welfare-state orientation under Part IV
Order, security and revenue dominate	Justice, capability, dignity and distribution become constitutional goals
Government mainly restrains wrongdoing	Government must also create positive social conditions
Equal legal form may be sufficient	Material inequality and unequal access become public concerns
Accountability is mostly legality-based	Accountability includes constitutional purpose and outcomes

[LIMIT] A welfare-state directive does not itself create an unlimited judicially enforceable benefit. Delivery usually requires legislation, appropriation, institutions, administrative capacity and federal cooperation.

Article 36: the addressee

[FACT] In Part IV, **State** has the same meaning as in Part III. It covers Union and State legislative and executive organs, local authorities and other authorities falling within Article 12.

[ANALYSIS] This common definition links Parts III and IV: the same public power restrained by Fundamental Rights is directed toward welfare ends by Part IV.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Part IV constitutionalises the purpose of public power. Articles 36-37 address the same Article 12 State restrained by Part III and direct it toward welfare legislation. This makes the directives a governance charter, but Article 37 prevents treating the charter itself as an automatic individual writ remedy.

NAMED EVIDENCE

Articles 36-37; Irish Constitution of 1937; Government of India Act, 1935 Instrument-of-Instructions analogy; Granville Austin.

PRELIMS TRAP

Do not reduce Part IV to a moral wish list or claim that Article 37 makes it superior to Part III.

MAINS USE

Use as the introduction to any broad DPSP, welfare-State or social-and-economic-democracy answer.

MINI RECAP

Part IV fixes constitutional ends; legislation, finance and administration supply the means.

SESSION 2 - ARTICLE 37: NON-JUSTICIABILITY, DUTY AND POLITICAL SANCTION

Stage: Foundation

VISUAL FIRST

NO DIRECT COURT ENFORCEMENT + FUNDAMENTAL IN GOVERNANCE + STATE DUTY IN LAW-MAKING -> POLITICAL / BUDGET / AUDIT ACCOUNTABILITY

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 37 withholds a direct court remedy while retaining constitutional duty and governance importance.

Technical definition: Non-justiciability concerns remedy; fundamentality and the express law-making duty concern constitutional obligation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 37 withholds a direct remedy, not constitutional force.

MUST-WRITE KEYWORDS

non-justiciability; fundamental in governance; State duty; political sanction; policy sequencing; accountability

Exact three-part rule

1. [FACT] The provisions in Part IV **shall not be enforceable by any court**.
2. [FACT] The principles are nevertheless **fundamental in the governance of the country**.
3. [FACT] It is the **duty of the State** to apply them in making laws.

What non-justiciability means

- A person cannot ordinarily obtain a writ merely because the State has not fully implemented Article 41, 44 or 47.
- A court cannot replace the legislature's resource allocation merely by treating a directive as an immediately enforceable entitlement.
- Failure to satisfy a directive does not by itself make a law void.

What it does not mean

- It does not make Part IV constitutionally optional.
- It does not prevent courts from using a directive to interpret a Fundamental Right, statute or reasonableness question.
- It does not prevent Parliament from amending the Constitution or enacting laws to implement a directive, subject to the basic structure.
- It does not erase democratic accountability for persistent non-performance.

Why the framers withheld direct enforcement

[FACT] The standard source-backed reasons were:

1. insufficient financial resources at Independence;
2. vast social diversity and backwardness;
3. the need to let the new State choose the order, time, place and mode of implementation; and
4. institutional prudence: courts could not continuously design budgets and administration for the entire welfare programme.

[ANALYSIS] These reasons justify **sequencing**, not permanent neglect. Article 37 converts flexibility into responsibility by retaining a constitutional duty and electoral sanction.

Political sanction

- [FACT] B.N. Rau's division between justiciable and non-justiciable rights became Parts III and IV.
- [FACT] Ambedkar argued that a government resting on popular vote could not ignore the directives without answering to the electorate.
- [ANALYSIS] The enforcement chain is legislature -> budget -> administration -> audit/opposition/public debate -> election. Courts enter mainly to preserve constitutional boundaries, not to run the programme.

UPSC trap: "Non-justiciable" is a rule about the remedy; it is not a verdict that the principle lacks constitutional status.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 37 deliberately separates obligation from remedy. Its text bars direct enforcement, yet calls the principles fundamental and requires State application in law-making. The result is policy space over timing and resources, qualified by legislative scrutiny, budgets, audit, public debate and elections.

NAMED EVIDENCE

Article 37; B.N. Rau's justiciable/non-justiciable division; B.R. Ambedkar's electoral-accountability explanation.

PRELIMS TRAP

Non-justiciable does not mean legally useless, optional, superior to Fundamental Rights or automatically enforceable after delay.

MAINS USE

Use to answer 'non-justiciable but fundamental' and to distinguish constitutional duty from individual entitlement.

MINI RECAP

Remedy is denied; duty, direction and political accountability remain.

SESSION 3 - COMPLETE ARTICLE-BY-ARTICLE COVERAGE: ARTICLES 38 TO 43B

Stage: Core - distributive text

VISUAL FIRST

ARTICLE 38 JUST SOCIAL ORDER -> ARTICLE 39(a)-(f): LIVELIHOOD / RESOURCES / CONCENTRATION / PAY / HEALTH / CHILDHOOD

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 38 and 39 state the distributive core of the welfare State.

Technical definition: Article 38 sets the justice-and-inequality frame; Article 39 supplies six distinct policy clauses that must not be merged.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 38-39 move constitutional justice from equal legal status toward livelihood, distribution, anti-concentration and dignified development.

MUST-WRITE KEYWORDS

Article 38(1); Article 38(2); Article 39(a)-(f); common good; common detriment; equal pay; childhood dignity

Article	Exact constitutional direction	Mechanism and close-option control
38(1)	Promote welfare by securing a social order informed by social, economic and political justice in all institutions of national life	Broad welfare-state foundation
38(2)	Minimise inequalities in income and endeavour to eliminate inequalities in status, facilities and opportunities among individuals and groups in different areas/vocations	Added by the 44th Amendment; wider than income inequality
39(a)	Adequate means of livelihood for citizens, men and women equally	Livelihood, not an immediately enforceable job guarantee
39(b)	Ownership and control of material resources of the community distributed to subserve the common good	Distribution is broad; private resources may qualify contextually, not automatically
39(c)	Economic system must not cause concentration of wealth and means of production to the common detriment	The constitutional anti-concentration clause
39(d)	Equal pay for equal work for men and women	Equality of work and remuneration; implemented through wage and equal-remuneration legislation
39(e)	Health and strength of workers, men and women, and tender age of children not abused; citizens not forced by economic necessity into unsuitable avocations	Protects against exploitative labour conditions
39(f)	Children develop in freedom and dignity; childhood and youth protected against exploitation and moral/material abandonment	Substituted/recast by the 42nd Amendment
39A	Equal justice and free legal aid so opportunities for justice are not denied by economic or other disabilities	42nd Amendment; Legal Services Authorities Act, 1987
40	Organise village panchayats and endow them with powers to function as units of self-government	Constitutionalised institutionally by the 73rd Amendment; Article 40 itself remains a DPSP
41	Within the limits of economic capacity and development, make effective provision for work, education and public assistance in unemployment, old age, sickness, disablement and undeserved want	The textual capacity limitation is examinable
42	Secure just and humane conditions of work and maternity relief	Labour dignity and reproductive protection
43	Secure a living wage, decent standard of life, leisure and social/cultural opportunities; promote cottage industries in rural areas individually or co-operatively	Contains both socialistic and Gandhian elements
43A	Secure workers' participation in management of undertakings, establishments or organisations engaged in industry	Added by the 42nd Amendment
43B	Promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies	Added by the 97th Amendment; remains valid after <i>Rajendra N. Shah</i>

High-value distinctions inside Article 39

- **39(a)** livelihood.
- **39(b)** distribution of material resources for common good.
- **39(c)** prevention of wealth/means-of-production concentration.
- **39(d)** equal pay.
- **39(e)** protection of worker/child health against abuse and unsuitable avocations.
- **39(f)** dignified child development and protection from exploitation/abandonment.

Memory rule: L-R-C-P-H-C = Livelihood -> Resources -> Concentration -> Pay -> Health -> Children.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 39(b) directs distribution of material resources to subserve the common good, while Article 39(c) prevents concentration of wealth and means of production to common detriment. Keeping the clauses separate permits redistributive policy without converting every private asset into a community resource.

NAMED EVIDENCE

Articles 38 and 39(a)-(f); Forty-fourth Amendment; Forty-second Amendment's recasting of Article 39(f); Property Owners Association (2024).

PRELIMS TRAP

Equal pay belongs to Article 39(d); Article 39(e) concerns health and unsuitable avocations; Article 39(f) concerns childhood and youth.

MAINS USE

Use as the textual base for welfare-State, inequality, redistribution and child-protection answers.

MINI RECAP

Justice frame first; six separate Article 39 clauses next.

SESSION 4 - COMPLETE ARTICLE-BY-ARTICLE COVERAGE: ARTICLES 44 TO 51

Stage: Core - reform, ecology and institutions

VISUAL FIRST

44 UCC | 45 BELOW SIX | 46 WEAKER SECTIONS | 47 HEALTH | 48 AGRICULTURE/CATTLE | 48A ENVIRONMENT | 49 HERITAGE | 50 SEPARATION | 51 PEACE

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 44-51 extend welfare into civil reform, capability, ecology, heritage, judicial organisation and international conduct.

Technical definition: Each Article contains a distinct addressee, subject and textual qualification; Article 51 itself has four limbs.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part IV's later Articles show that constitutional welfare includes equal civil status, early capability, ecological security, impartial institutions and peaceful international conduct.

MUST-WRITE KEYWORDS

Article 44; Article 45; Article 46; Article 47; Article 48; Article 48A; Article 49; Article 50; Article 51(a)-(d)

Article	Exact constitutional direction	Mechanism and close-option control
44	Endeavour to secure for citizens a uniform civil code throughout India	Non-justiciable; personal law is Concurrent List Entry 5
45	Provide early childhood care and education for all children until they complete six years	Recast by the 86th Amendment after elementary education moved to Article 21A
46	Promote educational and economic interests of weaker sections, especially SCs/STs, and protect them from social injustice and exploitation	"Especially" SCs/STs; not limited only to them

Article	Exact constitutional direction	Mechanism and close-option control
47	Raise nutrition and standard of living and improve public health as primary duties; endeavour to prohibit intoxicating drinks/drugs injurious to health except medicinal use	Public health plus prohibition; overlapping classification
48	Organise agriculture and animal husbandry on modern scientific lines; preserve/improve breeds and prohibit slaughter of cows, calves and other milch/draught cattle	Scientific husbandry plus cattle protection
48A	Protect and improve environment and safeguard forests and wildlife	Added by the 42nd Amendment; linked to Article 51A(g) and Article 21 jurisprudence
49	Protect every monument/place/object of artistic or historic interest declared by or under Parliamentary law to be of national importance from spoliation, disfigurement, destruction, removal, disposal or export	Declaration by/under Parliamentary law is the textual filter
50	Separate judiciary from executive in the public services of the State	Source of the recurrent Prelims question
51(a)	Promote international peace and security	Foreign-policy direction
51(b)	Maintain just and honourable relations between nations	Norm of responsible international conduct
51(c)	Foster respect for international law and treaty obligations in dealings of organised peoples	Does not automatically make every treaty self-executing domestically
51(d)	Encourage settlement of international disputes by arbitration	Peaceful dispute resolution

Directives that commonly get omitted

- Article 49 is not a generic culture clause; it protects nationally important monuments, places and objects within the Parliamentary-law framework.
- Article 51 has four distinct limbs. "International peace" alone is incomplete.
- Article 46 includes weaker sections generally, with special emphasis on SCs and STs.
- Article 41 expressly depends on economic capacity and development.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 50 directs separation of the judiciary from the executive in State public services. This institutional directive supports impartial adjudication, but it remains distinct from the detailed guarantees of judicial independence located elsewhere in the Constitution.

NAMED EVIDENCE

Articles 44-51; Eighty-sixth Amendment; Forty-second Amendment; Ancient Monuments and Archaeological Sites and Remains Act, 1958.

PRELIMS TRAP

Article 49 has a Parliamentary-law declaration filter, and Article 51(c) does not automatically incorporate every treaty into domestic law.

MAINS USE

Use when a broad question asks how DPSPs reach beyond economic redistribution.

MINI RECAP

Civil reform, childhood, health, ecology, heritage, separation and peace complete the Part IV map.

SESSION 5 - CLASSIFICATION: USEFUL SCHOLARSHIP, NOT CONSTITUTIONAL TEXT

Stage: Core - classification

VISUAL FIRST

SOCIALISTIC <-> OVERLAP <-> GANDHIAN <-> OVERLAP <-> LIBERAL-INTELLECTUAL (TEXTBOOK MAP, NOT CONSTITUTIONAL LABELS)

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The threefold classification is a study aid based on content, not a classification enacted by the Constitution.

Technical definition: Overlap is expected because one Article may combine distributive, Gandhian and liberal-intellectual elements.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Classify for recall, but answer from the Article's text: taxonomy is subordinate to constitutional wording.

MUST-WRITE KEYWORDS

socialistic; Gandhian; liberal-intellectual; non-textual classification; overlap; Article-first method

[FACT] The Constitution itself does **not** classify DPSP into three categories. The familiar division is a scholarly/Laxmikanth classification based on content and direction.

Classification	Article set commonly used	Core idea
Socialistic	38, 39(a)-(f), 39A, 41, 42, 43, 43A, 47	Social-economic justice, labour protection, welfare and redistribution
Gandhian	40, 43, 43B, 46, 47, 48	Village self-rule, cottage/co-operative economy, weaker sections, prohibition and cattle protection
Liberal-intellectual	44, 45, 48, 48A, 49, 50, 51	Civil reform, child development, scientific agriculture, ecology, heritage, rule-of-law institutions and internationalism

Honest overlaps

- Article 43 is socialistic for living wage and Gandhian for rural cottage industries.
- Article 47 is socialistic for nutrition/public health and Gandhian for prohibition.
- Article 48 is liberal-intellectual for scientific agriculture/animal husbandry and Gandhian for cattle protection.
- Article 46 combines distributive justice with the Gandhian programme of uplift.

UPSC trap: A category label never overrides the Article's text. If options differ, select by the directive, not by a rigid coaching taxonomy.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 43 demonstrates why rigid classification fails: living wage supports the socialistic cluster, while rural cottage industries support the Gandhian cluster. The overlap is analytically useful and constitutionally harmless because the labels are not part of Part IV's text.

NAMED EVIDENCE

Laxmikanth classification; Articles 43, 46, 47 and 48 as overlapping examples; N. Srinivasan's arrangement criticism.

PRELIMS TRAP

Never write that the Constitution itself labels an Article socialistic, Gandhian or liberal-intellectual.

MAINS USE

Use the categories to organise an answer, then acknowledge overlaps and return to exact clauses.

MINI RECAP

Article text is law; the three categories are only a memory and analytical device.

SESSION 6 - AMENDMENTS THAT CHANGED PART IV

Stage: Core - amendment chronology

VISUAL FIRST

1951 FIRST -> 1955 FOURTH -> 1971 24TH/25TH -> 1976 42ND -> 1978 44TH -> 2002 86TH -> 2011 97TH

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: DPSP development includes both amendments to Part IV and amendments protecting or enabling implementing laws.

Technical definition: The chronology must distinguish textual additions to Part IV from property, amendment-power and Article 31C responses.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The amendment history of Part IV is not one list: some amendments added directives, while others altered the constitutional route for implementing them.

MUST-WRITE KEYWORDS

First Amendment; Fourth Amendment; Twenty-fourth; Twenty-fifth; Forty-second; Forty-fourth; Eighty-sixth; Ninety-seventh

Amendment	Change	Exam caution
42nd Amendment, 1976	Added/recast Article 39(f); inserted 39A, 43A and 48A	Four Part IV additions are the standard answer
44th Amendment, 1978	Inserted Article 38(2) on inequalities in income, status, facilities and opportunities	Not merely "income inequality"
86th Amendment, 2002	Inserted Article 21A and recast Article 45 for early childhood care/education below six	Elementary education moved into Part III; Article 45 did not disappear
97th Amendment, 2011	Inserted Article 43B and Part IXB; expanded Article 19(1)(c) to co-operative societies	<i>Rajendra N. Shah</i> severed the invalid State-co-operative operation of Part IXB; Article 43B remains

Rajendra N. Shah control

[FACT] Co-operative societies within a State fall within Entry 32, State List. The 97th Amendment's Part IXB altered that State legislative field without the ratification required by the proviso to Article 368(2).

[FACT] The Supreme Court therefore held:

- Part IXB invalid/inoperative for State co-operative societies;
- Part IXB operative for multi-State co-operative societies;
- Article 43B and the amendment to Article 19(1)(c) were not struck down.

[ANALYSIS] The case demonstrates that implementing a DPSP cannot bypass federal amendment procedure. Welfare purpose does not erase structural limits.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: The First and Fourth Amendments strengthened the constitutional protection of social reform and land-reform measures; the Twenty-fifth later inserted Article 31C for Article 39(b)/(c). By contrast, the Forty-second, Forty-fourth, Eighty-sixth and Ninety-seventh directly added or recast Part IV provisions.

NAMED EVIDENCE

Constitution Amendment Acts of 1951, 1955, 1971, 1976, 1978, 2002 and 2011; Rajendra N. Shah (2021).

PRELIMS TRAP

Do not say the Fourth Amendment inserted Article 31C or that the Eighty-sixth Amendment repealed Article 45.

MAINS USE

Use to distinguish response amendments from direct Part IV additions.

MINI RECAP

Early protection, amendment-power response, Article 31C, textual additions and federal limits are separate stages.

SESSION 7 - FUNDAMENTAL RIGHTS-DPSP CHRONOLOGY: CONFLICT TO HARMONY

Stage: Synthesis - FR-DPSP phases

VISUAL FIRST

EARLY CONFLICT -> AMENDMENT RESPONSE -> BASIC STRUCTURE -> HARMONY/BALANCE -> NARROW ARTICLE 31C

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The FR-DPSP relationship evolved through phases rather than a permanent supremacy rule.

Technical definition: Ordinary rights review, constituent amendment power, basic structure, judicial review and Article 31C together define the current settlement.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian constitutional law moved from crude hierarchy to structured harmony: rights discipline the means, while Directive Principles supply distributive ends.

MUST-WRITE KEYWORDS

Champakam; Golaknath; Kesavananda Bharati; Minerva Mills; harmony and balance; basic structure

Stage	Constitutional development	Exact significance
<i>Champakam Dorairajan (1951)</i>	Communal reservation order could not override Article 29(2) by relying on Article 46	FR prevailed in direct conflict; led to the First Amendment and Article 15(4)
First Amendment (1951)	Added Article 15(4); created Article 31A/31B architecture	Began constitutional accommodation of social reform and land reform
Fourth Amendment (1955)	Strengthened the property/land-reform protection architecture and added laws to the Ninth Schedule	Continued the early amendment response; it did not insert Article 31C
<i>I.C. Golaknath (1967)</i>	Parliament could not abridge Fundamental Rights by amendment	Blocked FR amendment for DPSP implementation
24th Amendment (1971)	Affirmed Parliament's constituent power to amend any provision	Response to <i>I.C. Golaknath (1967)</i> , subject later to basic structure

Stage	Constitutional development	Exact significance
25th Amendment (1971)	Inserted Article 31C for laws implementing Article 39(b)/(c); also attempted to exclude judicial scrutiny of the declaration	Created the limited shield
<i>Kesavananda Bharati</i> (1973)	Upheld constituent power subject to basic structure; upheld first part of 31C and invalidated the review-ouster	Ends cannot eliminate judicial review
42nd Amendment (1976)	Extended Article 31C from 39(b)/(c) to every DPSP	Attempted Part IV primacy over Articles 14/19
<i>Minerva Mills</i> (1980)	Invalidated that extension; balance between Parts III and IV is basic structure	Harmony, not absolute primacy, is controlling
<i>Unni Krishnan</i> (1993)	Read education up to 14 into Article 21 with support from Articles 41, 45 and 46	DPSP illuminated an enforceable right
86th Amendment (2002)	Inserted Article 21A and recast Article 45	Textual constitutionalisation of the education floor
<i>I.R. Coelho</i> (2007)	Post-24 April 1973 Ninth Schedule insertions remain reviewable for damage to basic structure	Implementing laws cannot obtain absolute immunisation
<i>Property Owners Association</i> (2024)	Original Article 31C remains; 39(b) may include some private resources but not all automatically	Current Article 31C/resource control

Present position: use this formulation

[ANALYSIS] Fundamental Rights and DPSP are complementary constitutional commitments. Fundamental Rights remain enforceable and cannot be destroyed in the name of welfare. Parliament may amend rights and legislate to implement Part IV, but the basic structure - including judicial review and harmony between Parts III and IV - limits that power. The specific surviving exception is Article 31C for laws genuinely giving effect to Article 39(b) or (c), which protects them from Articles 14 and 19 challenges while preserving judicial review of the nexus and constitutional boundaries.

Do not write: "Fundamental Rights always prevail over DPSP." **Write:** "Enforceable rights retain primacy in ordinary conflict, but constitutional harmony, permissible amendment and the narrow Article 31C shield qualify any absolute hierarchy."

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Champakam gave enforceable rights priority in direct conflict, prompting constitutional responses. Kesavananda permitted amendment subject to basic structure, and *Minerva Mills* rejected all-DPSP priority because harmony between Parts III and IV is itself basic structure. The current doctrine is therefore balance, not absolute antagonism.

NAMED EVIDENCE

Champakam Dorairajan (1951); First and Fourth Amendments; Golaknath (1967); Twenty-fourth/Twenty-fifth Amendments; Kesavananda (1973); *Minerva Mills* (1980).

PRELIMS TRAP

Do not write that Fundamental Rights always defeat DPSPs or that Part IV now overrides Part III.

MAINS USE

Use as the mandatory chronological spine in any FR-DPSP relationship question.

MINI RECAP

Conflict produced amendment; amendment met basic structure; basic structure requires harmony.

SESSION 8 - ARTICLE 31C AFTER PROPERTY OWNERS ASSOCIATION (2024)

Stage: Synthesis - Article 31C

VISUAL FIRST

GENUINE 39(b)/(c) OBJECTIVE? -> REAL NEXUS? -> ARTICLES 14/19 SHIELD -> JUDICIAL REVIEW + BASIC STRUCTURE RETAINED

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 31C is a narrow shield for genuine Article 39(b)/(c) laws, not a general welfare immunity.

Technical definition: Property Owners Association (2024) confirms survival of the original shield and rejects automatic treatment of all private property as material resources of the community.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 31C protects a demonstrated distributive nexus, not a legislative label.

MUST-WRITE KEYWORDS

Article 31C; Article 39(b); Article 39(c); real nexus; Articles 14 and 19; judicial review; common good

Surviving shield

- [FACT] Article 31C remains in force to the extent upheld in *Kesavananda Bharati* (1973).
- [FACT] It protects a law genuinely giving effect to Article 39(b) or (c) from being void for inconsistency with Articles 14 or 19.
- [FACT] The 42nd Amendment's extension to all DPSP was invalidated in *Minerva Mills* (1980).
- [FACT] The clause attempting to make the legislature's declaration conclusive and exclude judicial review did not survive *Kesavananda Bharati* (1973).

Judicial inquiry

1. Does the law have a real and substantial connection to Article 39(b) or (c)?
2. If 39(b) is invoked, is the resource a material resource **of the community**?
3. Does the proposed distribution subserve the common good?
4. Does the measure damage another basic-structure feature?

Private resources after 5 November 2024

[FACT] The Court rejected both extremes:

- it rejected the proposition that private ownership always excludes a resource from Article 39(b); and
- it rejected the proposition that every privately owned asset automatically becomes a material resource of the community.

[FACT] The inquiry is context-specific. Relevant non-exhaustive factors include:

- nature and inherent characteristics of the resource;
- effect on community well-being;
- scarcity;
- consequences of concentrated private ownership; and
- the public-trust/common-good dimension.

[LIMIT] Article 31C is not a general licence for nationalisation, arbitrary redistribution or immunity from every Fundamental Right. Its surviving textual shield is tied to Articles 39(b)/(c) and Articles 14/19.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: A law receives Article 31C protection only if it genuinely furthers Article 39(b) or (c). Property Owners Association confirms that some privately owned resources may qualify contextually, but not all private property does. Courts retain power to test the nexus and basic-structure limits.

NAMED EVIDENCE

Twenty-fifth Amendment; Kesavananda Bharati (1973); Minerva Mills (1980); Property Owners Association v. State of Maharashtra, 5 November 2024.

PRELIMS TRAP

The current shield is against Articles 14 and 19 only, and a statutory declaration cannot exclude review.

MAINS USE

Use for distributive legislation, property and current Article 31C questions.

MINI RECAP

Narrow objective, genuine connection, limited shield, preserved review.

SESSION 9 - FROM DIRECTIVE TO ENFORCEABLE ENTITLEMENT

Stage: Synthesis - conversion into enforceable law

VISUAL FIRST

DPSP VALUE -> RIGHTS INTERPRETATION -> CONSTITUTIONAL AMENDMENT / STATUTE -> INSTITUTION -> ENFORCEABLE LEGAL FLOOR

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Directive Principle can shape an enforceable entitlement only through a right, amendment, statute or other legal mediation.

Technical definition: Education and legal aid illustrate conversion from Part IV value to Article 21 doctrine, textual right, legislation and institutional remedy.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part IV does not enforce itself, but it can mature into enforceable law through constitutional and statutory mediation.

MUST-WRITE KEYWORDS

constitutional mediation; Article 21; Article 21A; Article 39A; RTE Act; Legal Services Authorities Act

Education

1. Articles 41 and old Article 45 supplied the educational goal.
2. *Unni Krishnan* read education up to age 14 into Article 21, subject to the State's capacity beyond that stage.
3. The 86th Amendment inserted Article 21A for free and compulsory education of children aged 6-14.
4. Article 45 was recast for early childhood care and education below six.
5. The Right of Children to Free and Compulsory Education Act, 2009 supplied the statutory mechanism.

Legal aid

1. Article 39A states equal justice/free legal aid.
2. *M.H. Hoskot* and *Hussainara Khatoon* connected legal representation and fair procedure to Article 21.
3. The Legal Services Authorities Act, 1987 created institutional entitlement and delivery.

[ANALYSIS] This is **constitutional conversion by mediation**, not automatic enforceability: directive -> rights interpretation -> amendment/statute -> institution -> remedy and accountability.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Articles 41 and 45 informed the education guarantee developed through Unni Krishnan, the Eighty-sixth Amendment and the RTE Act. The enforceable content comes from Article 21A and statute, not from silently converting Article 37 into a direct remedy.

NAMED EVIDENCE

Articles 41, 45, 21 and 21A; Unni Krishnan (1993); Eighty-sixth Amendment; RTE Act, 2009; Articles 39A and 21; Legal Services Authorities Act, 1987.

PRELIMS TRAP

Implementation or judicial interpretation does not make every DPSP directly enforceable in its full breadth.

MAINS USE

Use to show how non-justiciable constitutional values can acquire a legally enforceable floor.

MINI RECAP

Directive supplies the value; a right, amendment or statute supplies the remedy.

SESSION 10 - IMPLEMENTATION MAP: LAW, INSTITUTION, OUTCOME AND HONEST LIMITS

Stage: Synthesis - governance and implementation

VISUAL FIRST

DPSP -> COMPETENT LAW -> APPROPRIATION -> INSTITUTION -> FRONT-LINE DELIVERY -> AUDIT/REVIEW -> OUTCOME

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Implementation means converting constitutional direction into funded, lawful and accountable institutions.

Technical definition: A statute or scheme is evidence of an implementation vehicle, not proof that the directive is universally realised.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A Directive Principle is realised not by enactment alone but by the full chain from constitutional text to funded and accountable outcomes.

MUST-WRITE KEYWORDS

legislative competence; appropriation; administrative capacity; audit; review; political accountability; outcome gap

Directive	Named constitutional/statutory/institutional vehicle	What it proves	Honest limit
38, 39(b)/(c)	Land-reform laws; First/Fourth/Seventeenth Amendments; Articles 31A/31B; Ninth Schedule	Redistribution and agrarian restructuring were treated as constitutional priorities	Ceiling, tenancy and redistribution outcomes vary; <i>I.R. Coelho</i> prevents absolute post-1973 Ninth Schedule immunity
40	73rd Amendment, Part IX; State Panchayat laws	Village self-government received constitutional status	Fiscal devolution, functionaries and State control remain uneven; detailed owner is Polity 23

Directive	Named constitutional/statutory/institutional vehicle	What it proves	Honest limit
Urban decentralisation related to welfare delivery	74th Amendment, Part IXA	Municipal democracy supports Part IV outcomes	Article 40 expressly mentions village panchayats, not municipalities; detailed owner is Polity 24
39A	Legal Services Authorities Act, 1987; NALSA/SLSA/DLSA/Taluk committees; Lok Adalats	Converts equal justice into a nationwide statutory system	Awareness, counsel quality, continuity and access remain uneven
41, 45	86th Amendment; Article 21A; RTE Act, 2009; early-childhood programmes	A directive helped create an enforceable education floor	Enrolment does not itself ensure learning, inclusion or early-childhood quality
42, 43, 43A	Maternity Benefit Act, 1961; wage and industrial-relations legislation	Implements humane work, maternity protection and wage/labour directions	Informality, enforcement and bargaining-power gaps remain

Current law consolidates wages, industrial relations, social security and occupational safety | Rules, inspection, informality, platform work and State capacity determine outcomes; do not equate enactment with universal compliance |

| 46 | Article 15(4)/(5), Article 16(4), educational and welfare legislation/institutions | Protective discrimination and targeted development implement social justice | Reservation design and outcome evaluation belongs mainly to Polity 07/Social Justice |

| 47 | National Food Security Act, 2013; nutrition/health systems; State prohibition laws | Nutrition and health are primary constitutional duties | Health is State-heavy and capacity-sensitive; prohibition has public-health, revenue and liberty trade-offs |

| 48 | Agricultural, livestock and cattle-preservation laws within divided legislative competence | Scientific husbandry and cattle protection coexist in one Article | Restrictions still face legislative-competence and rights review |

| 48A | Water Act 1974, Air Act 1981, Environment (Protection) Act 1986, National Green Tribunal Act 2010 | Environmental protection has dense statutory institutions and links to Article 21/51A(g) | Enforcement, regulatory capacity and development trade-offs persist; detailed owner is Environment |

| 49 | Ancient Monuments and Archaeological Sites and Remains Act, 1958; Archaeological Survey of India | Nationally important heritage has a protective legal framework | Conservation conflicts with encroachment, infrastructure and funding constraints |

| 43B | 97th Amendment; Multi-State Co-operative Societies Act, 2002; State co-operative laws | Constitutional support for autonomy, democracy and professional management | Federal competence and capture/governance risks; detailed owner is Polity 39 |

| 50 | Separation of judicial and executive magistracy through State reforms and criminal-procedure architecture | Supports impartial adjudication and judicial independence | Administrative control and subordinate-judiciary capacity remain reform questions |

| 51 | UN participation; treaty practice; Arbitration and Conciliation Act, 1996 | Peace, international law and arbitration inform external conduct | Article 51 does not automatically incorporate every treaty into domestic law |

Implementation mechanism

[ANALYSIS] A directive succeeds only when five links align:

constitutional goal -> legislative competence -> budget -> institution/front-line worker -> measurable outcome.

Institutional incentives

- Governments prefer visible, credit-claimable programmes over slow institutional reform.
- Concurrent/State subjects create coordination and financing problems.
- Courts can enforce a floor more readily than manage a complex welfare system.

- Targeted schemes can improve access but may fragment entitlements or create exclusion errors.
- Universal constitutional language often meets unequal local capacity.

Cross-link discipline

- Fundamental Rights doctrine: Polity 07.
- Fundamental Duties and Article 51A(g)/(e)/(f): Polity 09.
- Panchayats and Municipalities: Polity 23/24.
- Co-operative structure: Polity 39.
- Environmental science/regulation: Environment folder.
- Outcome evaluation of education, health, food and vulnerable groups: Social Justice.

[LIMIT] This owner retains the Part IV constitutional mechanism needed to answer DPSP questions; it does not duplicate each specialist policy owner.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 40 gained institutional force through the Seventy-third Amendment, but meaningful self-government still depends on funds, functions and functionaries. The example shows why constitutionalisation is a major step without being proof of complete implementation.

NAMED EVIDENCE

Land-reform laws; Seventy-third Amendment; Legal Services Authorities Act, 1987; Right to Education Act, 2009; environmental legislation; constitutional audit and legislative scrutiny.

PRELIMS TRAP

No single scheme, statute or constitutional amendment proves universal fulfilment of a directive.

MAINS USE

Use for 'how far implemented' and welfare-State evaluation questions.

MINI RECAP

Measure the entire delivery chain, not the announcement or enactment alone.

SESSION 11 - ARTICLE 39A, FREE LEGAL AID AND NALSA

Stage: Applied core - Article 39A

VISUAL FIRST

ARTICLE 39A -> LSA ACT 1987 -> NALSA -> SLSA/HCLSC -> DLSA -> TALUK -> ELIGIBILITY + PRIMA-FACIE CASE

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 39A directs equal justice and free legal aid so economic or other disabilities do not deny access.

Technical definition: The Legal Services Authorities Act, 1987 creates the institutional entitlement, while Article 21 jurisprudence supplies an enforceable fair-procedure link in appropriate cases.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Free legal aid shows Part IV at work: constitutional direction becomes statutory architecture and a fair-procedure guarantee.

MUST-WRITE KEYWORDS

Article 39A; Legal Services Authorities Act, 1987; NALSA; section 12; section 13; prima facie case; Article 21

Constitutional and statutory chain

- [FACT] Article 39A was inserted by the 42nd Amendment to secure equal justice and free legal aid so justice is not denied by economic or other disabilities.
- [FACT] The Legal Services Authorities Act, 1987 creates the National Legal Services Authority and a multi-level institutional network.
- [FACT] Article 21 jurisprudence gives free legal representation an enforceable fair-procedure dimension in appropriate criminal cases; Article 39A supplies the constitutional value.

Institutional levels

Level	Core role
NALSA / Central Authority	National policy, schemes, coordination, grants and monitoring
Supreme Court Legal Services Committee	Legal services for Supreme Court matters
State Legal Services Authority	State implementation, directions, awareness and Lok Adalats
High Court Legal Services Committee	Legal services for High Court matters
District Legal Services Authority	District delivery, clinics, Lok Adalats and Taluk supervision
Taluk Legal Services Committee	Grassroots applications, aid, camps and local Lok Adalats

Section 12 eligibility

[FACT] A person is eligible if the person falls in any statutory category:

1. member of a Scheduled Caste or Scheduled Tribe;
2. victim of trafficking in human beings or begar under Article 23;
3. woman or child;
4. person with disability under the applicable disability-law definition;
5. person in undeserved want, including victim of mass disaster, ethnic violence, caste atrocity, flood, drought, earthquake or industrial disaster;
6. industrial workman;
7. person in custody, including specified protective, juvenile or mental-health institutions; or
8. person below the income ceiling prescribed by the appropriate government for the relevant court.

[FACT] Section 13 also requires the concerned authority to be satisfied that the applicant has a **prima facie case** to prosecute or defend. An income affidavit may be accepted unless there is reason to disbelieve it.

UPSC trap: There is no single permanent national income ceiling applicable to every court and State. Quote the statutory architecture and say the appropriate government prescribes the ceiling.

What legal services include

- legal advice and consultation;
- representation by a lawyer;
- drafting pleadings, appeals and legal documents;
- process fees and eligible litigation expenses;
- certified copies and case documents;
- legal awareness, clinics and assistance in securing statutory entitlements; and
- dispute settlement through Lok Adalats where appropriate.

Assessment of NALSA

Achievements

- creates a national-to-Taluk statutory chain;
- combines representation, advice, awareness and alternative dispute resolution;

- gives category-based access independent of income for several vulnerable groups;
- institutionalises Lok Adalats and para-legal outreach; and
- makes the constitutional promise visible in everyday justice delivery.

Limits

- low awareness and distance from institutions;
- uneven quality and continuity of panel lawyers;
- weak client-lawyer communication and follow-up;
- digital and linguistic barriers;
- legal-aid success measured by disposal rather than durable justice; and
- resource/capacity differences across States and districts.

[ANALYSIS] The reform priority is not another apex body. It is quality assurance: early legal advice, trained counsel, client feedback, outcome tracking, local-language access and stronger front-line legal services.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 39A supplies the constitutional commitment; sections 12-13 of the 1987 Act define eligibility and prima-facie screening; NALSA and State, district and Taluk bodies deliver services. The architecture is broad, but access depends on awareness, counsel quality and client-centred follow-up.

NAMED EVIDENCE

Article 39A; M.H. Hoskot; Hussainara Khatoon; Legal Services Authorities Act, 1987, sections 12-13; NALSA.

PRELIMS TRAP

There is no single permanent national income ceiling for all courts and States, and OBC status alone is not a separate section 12 category.

MAINS USE

Use directly for the audited 2023 GS-II NALSA question.

MINI RECAP

Constitutional value, statutory entitlement, institutional chain and delivery quality must all appear.

SESSION 12 - ORDINARY AND PERMANENT LOK ADALATS

Stage: Applied core - access to justice

VISUAL FIRST

ORDINARY: CONSENTED SETTLEMENT ONLY || PERMANENT: PUBLIC-UTILITY PRE-LITIGATION -> CONCILIATION -> BOUNDED MERITS DECISION

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Ordinary and Permanent Lok Adalats share a settlement purpose but differ sharply in merits jurisdiction.

Technical definition: Sections 19-22 govern ordinary settlement forums; sections 22A-22E create Permanent Lok Adalats for eligible public-utility disputes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The decisive distinction is adjudicatory power after conciliation fails.

MUST-WRITE KEYWORDS

ordinary Lok Adalat; Permanent Lok Adalat; consent; public utility service; pre-litigation; award; merits power

Ordinary Lok Adalat: sections 19-21

- [FACT] It may take a pending case or a pre-litigation dispute within the relevant court's jurisdiction.
- [FACT] It has no jurisdiction over a non-compoundable offence; official NALSA guidance also excludes divorce matters.
- [FACT] Members are statutory conciliators, not judges deciding the dispute on their own.
- [FACT] Settlement must rest on compromise/consent. Coercion is impermissible.
- [FACT] If settlement fails, a pending case returns to the referring court at the stage already reached; pre-litigation parties are advised to pursue ordinary remedies.
- [FACT] An award is deemed a civil-court decree/order, is final and binding, and no appeal lies.
- [LIMIT] Because an ordinary award is founded on settlement, absence of genuine consent attacks the foundation; the Act does not convert a failed conciliation into adjudication.

Permanent Lok Adalat: sections 22A-22E

- [FACT] It is a permanent pre-litigation forum for disputes concerning notified **public utility services**.
- [FACT] It begins with conciliation.
- [FACT] If parties fail to agree, it may decide the dispute on merits, provided the dispute does not relate to an offence.
- [FACT] It is guided by natural justice, objectivity, fair play, equity and other principles of justice; it is not bound by the Code of Civil Procedure or Evidence Act.
- [FACT] Its award, whether on settlement or merits, is final and binding, deemed a civil-court decree, and cannot be called in question through an original suit, application or execution proceeding.

Precise comparison

Point	Ordinary Lok Adalat	Permanent Lok Adalat
Subject	Broad civil/compoundable matters within jurisdiction	Public utility service disputes
Stage	Pending or pre-litigation	Pre-litigation
Core role	Conciliation only	Conciliation, then merits decision if permitted
Consent	Essential for award	Settlement consensual; merits award possible after failure
Failed settlement	Returns/advises parties to court	May adjudicate, if not an offence
Award	Deemed decree; final, binding; no appeal	Deemed decree; final, binding; statutory bar on original challenge route

Close-option trap: "No appeal" does not make the two bodies identical. The decisive distinction is **decision power after failed conciliation**.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: An ordinary Lok Adalat can make an award only on compromise; failed settlement returns a pending case to court. A Permanent Lok Adalat begins with conciliation but may decide an eligible non-offence public-utility dispute on merits. Finality therefore does not make their jurisdictions identical.

NAMED EVIDENCE

Legal Services Authorities Act, 1987, sections 19-22 and 22A-22E; official NALSA guidance.

PRELIMS TRAP

Do not give ordinary Lok Adalats coercive adjudicatory power or ignore the Permanent Lok Adalat's public-utility and offence limits.

MAINS USE

Use as institutional detail in an Article 39A/NALSA assessment.

MINI RECAP

Settlement-only ordinary forum; bounded post-conciliation merits power for the permanent forum.

SESSION 13 - ARTICLE 44 AND THE UNIFORM CIVIL CODE

Stage: Applied core - Article 44

VISUAL FIRST

ARTICLE 44 DIRECTION -> ENTRY 5 COMPETENCE -> EQUALITY/DIGNITY -> RELIGIOUS FREEDOM/PLURALISM -> CONSULTATIVE LEGISLATIVE DESIGN

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 44 directs the State to endeavour to secure a Uniform Civil Code for citizens throughout India.

Technical definition: It is a non-justiciable directive whose implementation must proceed through competent, rights-compliant legislation rather than judicial enactment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 44 fixes a constitutional direction, but democratic legislation must determine a consultative and rights-compliant form.

MUST-WRITE KEYWORDS

Article 44; shall endeavour; citizens; Concurrent List Entry 5; equality; religious freedom; pluralism; transition

Exact directive and legislative field

- [FACT] Article 44: the State shall endeavour to secure for the **citizens** a uniform civil code throughout the territory of India.
- [FACT] Article 37 makes it non-justiciable.
- [FACT] Concurrent List Entry 5 covers marriage and divorce; infants and minors; adoption; wills, intestacy and succession; joint family and partition; and all matters for which parties were immediately before the Constitution subject to personal law.
- [ANALYSIS] Both Parliament and State legislatures can act within the Concurrent List framework, subject to Article 254 and other constitutional limits.

The constitutional tension

Equality/reform case	Religion/pluralism case
Articles 14-15 reject sex-based subordination	Articles 25-26 protect conscience and religious affairs
Common civil citizenship can simplify unequal rules	Personal law carries identity, community and customary meaning
Article 25(2) permits social-welfare and reform legislation	Reform must distinguish secular civil consequences from protected belief/practice
Uniform rules can reduce forum and status inequality	A formally uniform rule may still embody majoritarian assumptions

[ANALYSIS] The question is not equality **versus** religion in the abstract. It is which civil rule causes constitutional harm, who has legislative competence, and whether the reform is proportionate, consultative and administratively workable.

Judicial decisions: holding versus observation

Case	What the Court decided	Article 44 caution
<i>Mohd. Ahmed Khan v. Shah Bano Begum</i> (1985)	Applied secular maintenance law to a divorced Muslim woman	Court observed that Article 44 remained unfulfilled; it did not enact a UCC
<i>Sarla Mudgal v. Union of India</i> (1995)	Conversion cannot be used to evade an existing Hindu marriage and contract a second valid marriage	Strong UCC observations were legislative exhortation, not mandamus
<i>John Vallamattom v. Union of India</i> (2003)	Invalidated discriminatory section 118 of the Indian Succession Act as applied to Christians	Article 44 observation accompanied an equality holding
<i>Shayara Bano v. Union of India</i> (2017)	By a 3:2 majority, invalidated/set aside instant triple talaq through differing opinions	It concerned a specific practice, not the validity of all personal-law systems and not a judicial UCC

Mandatory phrasing: Courts have **observed, urged or expressed concern** about Article 44. Do not say the Supreme Court ordered Parliament to enact a UCC.

Existing reform routes

1. **Community-specific codification:** Hindu marriage, succession, minority/guardianship, adoption and maintenance statutes of the 1950s.
2. **Secular opt-in:** Special Marriage Act, 1954 offers a civil marriage route but does not displace all personal law for everyone.
3. **Targeted rights correction:** reform discriminatory rules/practices without waiting for a universal code.
4. **Common code:** legislation under Entry 5, with transition, conflict-of-laws and federal questions.

Goa caveat

[FACT] Goa's family-law system, inherited from Portuguese civil law and subsequently adapted, is often cited as a common civil-law example.

[LIMIT] Do not describe Goa as perfectly uniform across every community, institution and subject. Exceptions and differential incidents mean it is an instructive model, not proof that every personal-law distinction has disappeared.

Law Commission

- [FACT] The 21st Law Commission's 2018 Consultation Paper on Reform of Family Law stated that a UCC was **neither necessary nor desirable at that stage** and prioritised removing discrimination within family laws.
- [FACT] The 22nd Law Commission issued a fresh public notice in 2023 inviting views on the UCC.
- [LIMIT] A consultation is not a final recommendation. No final 22nd Commission conclusion is claimed here.

Current-policy discipline

[LIMIT] State-level family-law initiatives can illustrate legislative experimentation only after checking the operative Gazette. No single State model proves national implementation of Article 44, and no unverified litigation outcome or implementation statistic is used here.

Graded Article 44 verdict

[ANALYSIS] Article 44 supplies a constitutional direction toward equal civil citizenship, but Article 37 assigns the choice of form and timing to democratic law-making. The strongest route is neither indefinite inaction nor mechanically identical rules: identify discrimination, consult affected groups, preserve genuinely protective diversity, offer clear transition and remedies, and test every provision against equality, liberty and religious freedom.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 44 supports equal civil citizenship, while Entry 5 supplies legislative competence over personal-law subjects. Courts have decided concrete statutory or rights disputes and sometimes urged reform, but they have not enacted a UCC. Legitimacy therefore depends on consultation, equality scrutiny and workable transition.

NAMED EVIDENCE

Article 44; Article 37; Concurrent List Entry 5; Shah Bano; Sarla Mudgal; John Vallamattom; Shayara Bano; Special Marriage Act, 1954.

PRELIMS TRAP

Do not describe Article 44 as a Fundamental Right or judicial observation as an order to Parliament.

MAINS USE

Use for a balanced UCC answer without absorbing detailed Fundamental Rights or social-policy topics.

MINI RECAP

Directive, competence, rights review and legislative design are four separate steps.

SESSION 14 - DIRECTIVES OUTSIDE PART IV

Stage: Applied core - location discipline

VISUAL FIRST

PART IV DPSP: ARTICLES 36-51 || STUDY-LABELLED OUTSIDE DIRECTIONS: 335 / 350A / 351

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Some constitutional directions studied with DPSPs lie outside Part IV and retain their own location and wording.

Technical definition: Calling Articles 335, 350A and 351 'directives outside Part IV' is a textbook study classification, not an expansion of Article 37.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional direction is broader than Part IV, but only Articles 36-51 are the Directive Principles of State Policy.

MUST-WRITE KEYWORDS

Article 335; Article 350A; Article 351; Part XVI; Part XVII; location; study classification

[FACT] These are constitutional directions but are **not** DPSP in Part IV:

Article	Location	Direction
335	Part XVI	Claims of SCs/STs shall be taken into consideration in services/posts consistently with maintenance of administrative efficiency; provisos permit specified relaxation/reservation measures

Article	Location	Direction
350A	Part XVII	State and local authorities should provide adequate facilities for mother-tongue instruction at the primary stage for children belonging to linguistic minority groups; President may issue directions
351	Part XVII	Union's duty to promote the spread and development of Hindi so it may serve as a medium of expression for India's composite culture, drawing on Hindustani and other Eighth Schedule languages and primarily Sanskrit for vocabulary

Distinction

- Part IV directives share Article 37's explicit non-enforceability/duty framework.
- Articles 335, 350A and 351 have their own text, location, addressee and mechanism.
- [ANALYSIS] Calling them "directives outside Part IV" is a study classification; do not relocate them into Articles 36-51.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: Article 350A directs mother-tongue instruction facilities for linguistic-minority children at the primary stage and permits Presidential directions. It remains in Part XVII, so an answer may compare its directive character without relocating it into Part IV.

NAMED EVIDENCE

Articles 335, 350A and 351; Parts XVI and XVII.

PRELIMS TRAP

Article 37's express framework governs Part IV; it should not be mechanically pasted onto every directive-looking provision elsewhere.

MAINS USE

Use only as an enrichment distinction or close-option control.

MINI RECAP

Study together when useful, but preserve constitutional location.

SESSION 15 - CRITICISMS, DEFENDERS AND IMPLEMENTATION CONSTRAINTS

Stage: Synthesis - evaluation

VISUAL FIRST

CRITIQUE -> NO REMEDY / VAGUENESS / RESOURCES / FEDERAL FRICTION || RESPONSE -> DUTY / INSTITUTIONS
/ INTERPRETATION / ACCOUNTABILITY

This visual fixes the session's operating logic before the detailed explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A sound evaluation weighs constitutional importance against resource, institutional and outcome limits.

Technical definition: Criticism must be answered through Article 37, named implementation, federal and fiscal capacity, judicial competence and measurable results.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Directive Principles are a constitutional compass rather than a delivery guarantee: binding in public purpose, flexible and uneven in implementation.

MUST-WRITE KEYWORDS

political sanction; resource constraint; federal capacity; institutional competence; outcome gap; constitutional compass

Named criticism supported by the local source

Critic	Supported formulation	Analytical use
K.T. Shah	"Pious superfluities"; cheque payable when bank resources permit	Attacks absence of a legal remedy and resource contingency
T.T. Krishnamachari	"Veritable dustbin of sentiments"	Attacks breadth and aspirational drafting
K.C. Wheare	"Manifesto of aims and aspirations"; moral homily	Questions constitutional enforceability
Ivor Jennings	"Pious aspirations"; criticised conservative/Fabian inheritance	Questions coherence and adaptability
N. Srinivasan	Neither properly classified nor logically arranged	Supports the non-textual/overlap caution
K. Santhanam	Potential Centre-State and executive conflicts	Opens the federal/institutional dimension

Defenders

Defender	Supported proposition	Analytical use
Ambedkar	Goal of economic democracy; electoral accountability	Part IV completes political democracy
Granville Austin	Social revolution; conscience with FR	Parts III and IV are complementary
B.N. Rau	Moral precepts with educative value	Non-justiciability can coexist with constitutional guidance
L.M. Singhvi	Life-giving provisions and social-justice philosophy	Part IV supplies constitutional direction
M.C. Setalvad	Instrument of Instructions, beacon to courts, background to State action, amplification of Preamble	Explains interpretive and institutional utility

Mechanism-based evaluation

Constraint	Institutional mechanism	Counterargument	Graded verdict
Resource scarcity	Article 41 capacity clause; annual budgets	Scarcity cannot justify arbitrary or permanent exclusion	Sequence progressively and protect a minimum floor
Federal variation	State/Concurrent subjects; grants; local bodies	Diversity allows innovation	Use national floors, State flexibility and transparent outcomes
Weak incentives	Electoral cycles reward visible benefits	Public opinion is Article 37's main sanction	Publish service standards, outcome dashboards and independent evaluation
Judicial competence	Courts lack budget/administrative expertise	Rights need an enforceable minimum	Courts set floors/reasons/non-discrimination; governments design delivery
Fragmented institutions	Multiple departments and schemes	Specialisation can improve targeting	Converge data, grievance systems and last-mile accountability
Rights conflict	Welfare may burden liberty/property/religion	Part IV is constitutionally fundamental	Use proportionality, competence and basic-structure harmony

Overall verdict

[ANALYSIS] DPSP are constitutionally indispensable but operationally incomplete. They succeed when converted into competent law, funded institutions and measurable outcomes; they fail when used as rhetorical cover for arbitrary power or unfunded promises. Their non-justiciability preserves democratic policy space, while Part III, judicial review and federal structure prevent welfare ends from consuming constitutional means.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim -> named evidence -> analysis -> qualification: K.T. Shah's resource-cheque criticism identifies the weakness of direct enforcement, but Article 37's duty and institutions such as NALSA show that Part IV is not legally useless. The stronger verdict is graded: constitutionalisation is real, yet delivery varies with finance, design, administration and accountability.

NAMED EVIDENCE

K.T. Shah; T.T. Krishnamachari; K.C. Wheare; Ivor Jennings; N. Srinivasan; K. Santhanam; Ambedkar; Granville Austin; M.C. Setalvad.

PRELIMS TRAP

A quotation list is not analysis; pair every criticism with a constitutional response and a delivery qualification.

MAINS USE

Use to conclude welfare-State, utility and implementation questions.

MINI RECAP

Indispensable direction, no automatic delivery, and constitutional limits on both neglect and overreach.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCD eight times; each option explanation and Examiner trap is question-specific.

BASIC MCQS / REMEDIATION

Q1. With reference to Articles 36 and 37, consider the following statements:

- "State" in Part IV has the same meaning as in Part III.
- Every Directive Principle creates an enforceable claim once Parliament has not acted for a reasonable period.
- Article 37 combines non-enforceability with a duty on the State in making laws.

Which statements are correct?

A. 1 and 3 only B. 2 only C. 1 and 2 only D. 1, 2 and 3

Answer: A.

- **A:** Correct: Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "2 only" fails against the controlling rule. Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.
- **C:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.
- **D:** Incorrect: the proposition "1, 2 and 3" fails against the controlling rule. Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.

Examiner trap: Article 36 imports the Part III meaning of State; it does not create a narrower Union-only addressee.

Q2. Which one of the following most accurately describes the historical analogy used for DPSP?

A. They convert conventions of Cabinet government into judicial remedies. B. They resemble the Instrument of Instructions under the Government of India Act, 1935, but are addressed to democratic legislative and executive authorities. C. They reproduce the enforceable social rights in the United States Bill of Rights. D. They are identical to Irish constitutional provisions and were copied without adaptation.

Answer: B.

- **A:** Incorrect: the proposition "They convert conventions of Cabinet government into judicial remedies." fails against the controlling rule. Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.
- **B:** Correct: Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "They reproduce the enforceable social rights in the United States Bill of Rights." fails against the controlling rule. Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.
- **D:** Incorrect: the proposition "They are identical to Irish constitutional provisions and were copied without adaptation." fails against the controlling rule. Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.

Examiner trap: Irish borrowing identifies the immediate model, while the Spanish antecedent and Indian adaptation prevent a photocopy claim.

Q3. Consider the following pairs:

1. Article 39(b) - distribution of material resources to subserve the common good
2. Article 39(c) - prevention of concentration of wealth and means of production to common detriment
3. Article 39(e) - equal pay for equal work
4. Article 39(f) - dignified development and protection of childhood/youth

Which pairs are correctly matched?

A. 1, 2, 3 and 4 B. 1 and 2 only C. 1, 2 and 4 only D. 2, 3 and 4 only

Answer: C.

- **A:** Incorrect: the proposition "1, 2, 3 and 4" fails against the controlling rule. Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations.
- **B:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from

forcing unsuitable avocations.

- **C:** Correct: Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "2, 3 and 4 only" fails against the controlling rule. Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations.

Examiner trap: Article 39(d), not Article 39(a) or 39(e), contains equal pay for equal work.

Q4. Which directive contains an express qualification tied to the State's economic capacity and development?

A. Article 42 B. Article 40 C. Article 39A D. Article 41

Answer: D.

- **A:** Incorrect: the proposition "Article 42" fails against the controlling rule. Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."
- **B:** Incorrect: the proposition "Article 40" fails against the controlling rule. Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."
- **C:** Incorrect: the proposition "Article 39A" fails against the controlling rule. Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."
- **D:** Correct: Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development." This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: The capacity qualifier belongs expressly to Article 41; it cannot be silently added to every directive.

Q5. Which classification statement is most accurate?

A. Article 43 overlaps: living wage is commonly socialistic, while cottage industries give it a Gandhian dimension. B. Article 48A is constitutionally labelled Gandhian. C. Articles 47 and 48 can belong to only one scholarly category each. D. Article 44 is classified as socialistic by the constitutional text.

Answer: A.

- **A:** Correct: The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Article 48A is constitutionally labelled Gandhian." fails against the controlling rule. The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.
- **C:** Incorrect: the proposition "Articles 47 and 48 can belong to only one scholarly category each." fails against the controlling rule. The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.
- **D:** Incorrect: the proposition "Article 44 is classified as socialistic by the constitutional text." fails against the controlling rule. The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.

Examiner trap: A textbook category helps revision but cannot displace the constitutional wording of an overlapping Article.

Q6. Consider the following amendment changes:

1. 42nd - Articles 39A, 43A and 48A
2. 44th - Article 38(2)
3. 86th - Article 21A and recast Article 45
4. 97th - Article 43B

Which is the correct assessment?

A. 1, 2 and 3 only B. All four are correctly matched C. 2 and 3 only D. 1 and 4 only

Answer: B.

- **A:** Incorrect: the proposition "1, 2 and 3 only" fails against the controlling rule. The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B.
- **B:** Correct: The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "2 and 3 only" fails against the controlling rule. The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B.
- **D:** Incorrect: the proposition "1 and 4 only" fails against the controlling rule. The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B.

Examiner trap: Amendment questions test both insertion and recasting: Article 45 survived the Eighty-sixth Amendment in a new form.

Q7. After Union of India v. Rajendra N. Shah (2021), which position is correct?

A. The entire 97th Amendment, including Article 43B, is void. B. Parliament has no competence over multi-State co-operative societies. C. Part IXB is operative for multi-State co-operative societies, but its application to State co-operative societies failed for want of ratification; Article 43B remains. D. Part IXB is fully valid for every State co-operative society because co-operatives serve a DPSP.

Answer: C.

- **A:** Incorrect: the proposition "The entire 97th Amendment, including Article 43B, is void." fails against the controlling rule. The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.
- **B:** Incorrect: the proposition "Parliament has no competence over multi-State co-operative societies." fails against the controlling rule. The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.
- **C:** Correct: The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "Part IXB is fully valid for every State co-operative society because co-operatives serve a DPSP." fails against the controlling rule. The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.

Examiner trap: A welfare objective cannot cure failure to follow the State-ratification requirement under Article 368.

Q8. Which statement about the current Article 31C is correct?

A. It protects every law implementing any Directive Principle from every Fundamental Right. B. It was wholly erased when the 42nd Amendment extension was struck down. C. It prevents courts from examining whether a law genuinely implements Article 39(b) or (c). D. It protects genuine Article 39(b)/(c) laws against Articles 14 and 19, while judicial review of the nexus and basic structure remains.

Answer: D.

- **A:** Incorrect: the proposition "It protects every law implementing any Directive Principle from every Fundamental Right." fails against the controlling rule. This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*.
- **B:** Incorrect: the proposition "It was wholly erased when the 42nd Amendment extension was struck down." fails against the controlling rule. This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*.
- **C:** Incorrect: the proposition "It prevents courts from examining whether a law genuinely implements Article 39(b) or (c)." fails against the controlling rule. This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*.
- **D:** Correct: This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: *Minerva Mills* invalidated the all-DPSP extension of Article 31C, not the surviving Article 39(b)/(c) shield.

Q9. Under *Property Owners Association (2024)*, which formulation is correct?

A. A privately owned resource may fall under Article 39(b) depending on its nature, community impact, scarcity, concentration and common-good dimension. B. Every private asset is automatically a material resource of the community. C. No privately owned resource can ever fall within Article 39(b). D. Article 39(b) applies only after the State has first nationalised the resource.

Answer: A.

- **A:** Correct: The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Every private asset is automatically a material resource of the community." fails against the controlling rule. The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.
- **C:** Incorrect: the proposition "No privately owned resource can ever fall within Article 39(b)." fails against the controlling rule. The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.
- **D:** Incorrect: the proposition "Article 39(b) applies only after the State has first nationalised the resource." fails against the controlling rule. The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.

Examiner trap: *Property Owners Association* rejects both automatic inclusion and automatic exclusion of privately owned resources.

Q10. Arrange the following in correct constitutional sequence:

1. *I.C. Golaknath (1967)*
2. 25th Amendment
3. *Minerva Mills (1980)*
4. *Kesavananda Bharati (1973)*

A. 2-1-4-3 B. 1-2-4-3 C. 1-4-2-3 D. 2-4-1-3

Answer: B.

- **A:** Incorrect: the proposition "2-1-4-3" fails against the controlling rule. 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.
- **B:** Correct: 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "1-4-2-3" fails against the controlling rule. 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.
- **D:** Incorrect: the proposition "2-4-1-3" fails against the controlling rule. 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.

Examiner trap: The chronology is causal: Golaknath produced an amendment response before Kesavananda imposed the basic-structure limit.

Q11. Which chain most accurately explains the constitutionalisation of education?

A. Article 46 alone created the enforceable right for every age group. B. Article 45 directly became enforceable without amendment or legislation. C. Articles 41/45 informed *Unni Krishnan*; the 86th Amendment inserted Article 21A and recast Article 45; the RTE Act supplied a statutory mechanism. D. Article 21A was inserted by the 42nd Amendment and later removed from Part III.

Answer: C.

- **A:** Incorrect: the proposition "Article 46 alone created the enforceable right for every age group." fails against the controlling rule. The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.
- **B:** Incorrect: the proposition "Article 45 directly became enforceable without amendment or legislation." fails against the controlling rule. The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.
- **C:** Correct: The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "Article 21A was inserted by the 42nd Amendment and later removed from Part III." fails against the controlling rule. The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.

Examiner trap: Education became enforceable through interpretation, amendment and statute; Article 45 did not enforce itself.

Q12. Which statement correctly distinguishes Article 40 and the 74th Amendment?

A. The 74th Amendment repealed Article 40. B. Article 40 expressly directs creation of Municipalities. C. Article 40 applies only to Parliament and not States. D. Article 40 expressly concerns village panchayats; Municipalities are separately constitutionalised in Part IXA.

Answer: D.

- **A:** Incorrect: the proposition "The 74th Amendment repealed Article 40." fails against the controlling rule. Local-government implementation overlaps, but the Article's exact text must be preserved.
- **B:** Incorrect: the proposition "Article 40 expressly directs creation of Municipalities." fails against the controlling rule. Local-government implementation overlaps, but the Article's exact text must be preserved.
- **C:** Incorrect: the proposition "Article 40 applies only to Parliament and not States." fails against the controlling rule. Local-government implementation overlaps, but the Article's exact text must be preserved.
- **D:** Correct: Local-government implementation overlaps, but the Article's exact text must be preserved. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: Article 40 names village panchayats; municipalities have their separate Part IXA route.

Q13. Which statement correctly describes Article 38(2)?

A. It directs the State to minimise inequalities in income and endeavour to eliminate inequalities in status, facilities and opportunities among individuals and groups. B. It is an original 1950 clause limited to inequality between citizens and non-citizens. C. It creates an immediately enforceable individual claim to identical income. D. It was inserted by the Forty-second Amendment together with Article 39A.

Answer: A.

- **A:** Correct: The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "It is an original 1950 clause limited to inequality between citizens and non-citizens." fails against the controlling rule. The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations.
- **C:** Incorrect: the proposition "It creates an immediately enforceable individual claim to identical income." fails against the controlling rule. The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations.
- **D:** Incorrect: the proposition "It was inserted by the Forty-second Amendment together with Article 39A." fails against the controlling rule. The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations.

Examiner trap: Article 38(2) reaches status, facilities and opportunities as well as income.

Q14. Which is the correct legal-services institutional order from national to grassroots?

A. NALSA -> DLSA -> SLISA -> Taluk Committee B. NALSA -> SLISA -> DLSA -> Taluk Legal Services Committee C. Supreme Court -> Parliament -> DLSA -> Gram Sabha D. NALSA -> Finance Commission -> High Court -> Lok Sabha

Answer: B.

- **A:** Incorrect: the proposition "NALSA -> DLSA -> SLISA -> Taluk Committee" fails against the controlling rule. Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.
- **B:** Correct: Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Supreme Court -> Parliament -> DLSA -> Gram Sabha" fails against the controlling rule. Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.
- **D:** Incorrect: the proposition "NALSA -> Finance Commission -> High Court -> Lok Sabha" fails against the controlling rule. Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.

Examiner trap: The territorial legal-services chain is NALSA-SLISA-DLSA-Taluk; court committees form a parallel forum-specific layer.

Q15. Consider the following regarding sections 12 and 13 of the Legal Services Authorities Act:

1. A woman is a section 12 category irrespective of the general income route.
2. Every OBC member is independently listed as a category.
3. A person in custody is a listed category.
4. The authority must be satisfied that there is a prima facie case.

Which statements are correct?

A. 2, 3 and 4 only B. 1, 2, 3 and 4 C. 1, 3 and 4 only D. 1 and 2 only

Answer: C.

- **A:** Incorrect: the proposition "2, 3 and 4 only" fails against the controlling rule. OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.

- **B:** Incorrect: the proposition "1, 2, 3 and 4" fails against the controlling rule. OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.
- **C:** Correct: OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.

Examiner trap: Section 12 category eligibility and section 13 prima-facie screening are distinct statutory questions.

Q16. If an ordinary Lok Adalat fails to secure settlement in a pending court case, what follows?

A. The dispute becomes non-justiciable. B. It must decide the dispute on merits. C. Its members may impose a compromise in the public interest. D. The record returns to the referring court, which continues from the stage reached before reference.

Answer: D.

- **A:** Incorrect: the proposition "The dispute becomes non-justiciable." fails against the controlling rule. Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.
- **B:** Incorrect: the proposition "It must decide the dispute on merits." fails against the controlling rule. Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.
- **C:** Incorrect: the proposition "Its members may impose a compromise in the public interest." fails against the controlling rule. Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.
- **D:** Correct: Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: An ordinary Lok Adalat cannot impose a merits decision when settlement fails.

Q17. Which feature uniquely marks a Permanent Lok Adalat?

A. For a pre-litigation public-utility dispute, it may decide on merits after conciliation fails, provided the dispute does not relate to an offence. B. It can decide non-compoundable criminal offences. C. It is constitutionally created by Article 39A without statutory basis. D. It hears appeals from ordinary Lok Adalat awards.

Answer: A.

- **A:** Correct: Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "It can decide non-compoundable criminal offences." fails against the controlling rule. Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.
- **C:** Incorrect: the proposition "It is constitutionally created by Article 39A without statutory basis." fails against the controlling rule. Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.
- **D:** Incorrect: the proposition "It hears appeals from ordinary Lok Adalat awards." fails against the controlling rule. Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.

Examiner trap: Permanent Lok Adalat merits power is confined to its pre-litigation public-utility statutory field.

Q18. Which statement about Article 44 is correct?

A. It applies only to criminal law, which remains non-uniform. B. It directs the State to endeavour to secure a UCC for citizens throughout India; personal-law subjects lie in Concurrent List Entry 5. C. It directs courts to enact a uniform code when Parliament fails. D. It is a Fundamental Duty enforceable through Article 32.

Answer: B.

- **A:** Incorrect: the proposition "It applies only to criminal law, which remains non-uniform." fails against the controlling rule. Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.
- **B:** Correct: Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields. This option states the controlling rule without adding a wider immunity or remedy.

- **C:** Incorrect: the proposition "It directs courts to enact a uniform code when Parliament fails." fails against the controlling rule. Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.
- **D:** Incorrect: the proposition "It is a Fundamental Duty enforceable through Article 32." fails against the controlling rule. Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.

Examiner trap: Article 44 states a State endeavour; it neither creates an Article 32 remedy nor transfers legislation to courts.

Q19. Which case-description pair is incorrectly stated?

A. *John Vallamattom* - discriminatory succession restriction and an Article 44 observation B. *Sarla Mudgal* - conversion cannot be used to evade an existing marriage C. *Shayara Bano* - Supreme Court ordered Parliament to enact a UCC within a fixed period D. *Shah Bano* - secular maintenance law and an Article 44 observation

Answer: C.

- **A:** Incorrect: the proposition "*John Vallamattom* - discriminatory succession restriction and an Article 44 observation" fails against the controlling rule. *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.
- **B:** Incorrect: the proposition "*Sarla Mudgal* - conversion cannot be used to evade an existing marriage" fails against the controlling rule. *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.
- **C:** Correct: *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "*Shah Bano* - secular maintenance law and an Article 44 observation" fails against the controlling rule. *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.

Examiner trap: Judicial observations supporting reform are not equivalent to a mandamus directing Parliament to enact a UCC.

Q20. Which statement correctly states the post-Eighty-sixth Amendment education arrangement?

A. Article 45 alone guarantees free and compulsory education from birth to fourteen. B. Article 21A covers children below six, while Article 45 begins at six. C. Article 45 was repealed when Article 21A was inserted. D. Article 21A covers ages six to fourteen, while Article 45 directs early childhood care and education until completion of six years.

Answer: D.

- **A:** Incorrect: the proposition "Article 45 alone guarantees free and compulsory education from birth to fourteen." fails against the controlling rule. The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six.
- **B:** Incorrect: the proposition "Article 21A covers children below six, while Article 45 begins at six." fails against the controlling rule. The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six.
- **C:** Incorrect: the proposition "Article 45 was repealed when Article 21A was inserted." fails against the controlling rule. The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six.
- **D:** Correct: The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: The Eighty-sixth Amendment divides the age field: Article 21A covers six to fourteen; Article 45 covers below six.

Q21. Which set contains only directives outside Part IV?

A. Articles 335, 350A and 351 B. Articles 44, 50 and 350A C. Articles 335, 43B and 351 D. Articles 39A, 350A and 351

Answer: A.

- **A:** Correct: Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Articles 44, 50 and 350A" fails against the controlling rule. Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.
- **C:** Incorrect: the proposition "Articles 335, 43B and 351" fails against the controlling rule. Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.
- **D:** Incorrect: the proposition "Articles 39A, 350A and 351" fails against the controlling rule. Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.

Examiner trap: Articles 335, 350A and 351 are constitutional directions outside Part IV, not additional Articles within it.

Q22. Which distinction is correct?

A. Both Articles were inserted by the 97th Amendment. B. Article 48 combines scientific agriculture/animal husbandry with cattle protection; Article 48A concerns environment, forests and wildlife. C. Article 48A is a Fundamental Duty. D. Article 48A concerns scientific animal husbandry, while Article 48 concerns forests.

Answer: B.

- **A:** Incorrect: the proposition "Both Articles were inserted by the 97th Amendment." fails against the controlling rule. Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.
- **B:** Correct: Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Article 48A is a Fundamental Duty." fails against the controlling rule. Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.
- **D:** Incorrect: the proposition "Article 48A concerns scientific animal husbandry, while Article 48 concerns forests." fails against the controlling rule. Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.

Examiner trap: Article 48 combines scientific husbandry and cattle protection; Article 48A separately covers environment, forests and wildlife.

Q23. Consider the following:

1. Article 49 protects nationally important monuments/places/objects declared by or under Parliamentary law.
2. Article 50 directs separation of judiciary from executive in State public services.
3. Article 51 encourages settlement of international disputes by arbitration.

Which are correct?

A. 1 only B. 2 and 3 only C. 1, 2 and 3 D. 1 and 2 only

Answer: C.

- **A:** Incorrect: the proposition "1 only" fails against the controlling rule. All reproduce often-neglected textual elements of Articles 49-51.
- **B:** Incorrect: the proposition "2 and 3 only" fails against the controlling rule. All reproduce often-neglected textual elements of Articles 49-51.
- **C:** Correct: All reproduce often-neglected textual elements of Articles 49-51. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. All reproduce often-neglected textual elements of Articles 49-51.

Examiner trap: Article 49 contains a Parliamentary-law declaration filter that a generic heritage option may omit.

Q24. Which statement best captures Article 47?

A. It only directs total prohibition and says nothing about nutrition. B. It creates an absolute Fundamental Right to health enforceable without legislation. C. It concerns animal husbandry and cattle breeds. D. It treats nutrition, standard of living and public health as primary duties and also directs prohibition of intoxicants injurious to health except medicinal use.

Answer: D.

- **A:** Incorrect: the proposition "It only directs total prohibition and says nothing about nutrition." fails against the controlling rule. Article 47 has both welfare/public-health and prohibition limbs.
- **B:** Incorrect: the proposition "It creates an absolute Fundamental Right to health enforceable without legislation." fails against the controlling rule. Article 47 has both welfare/public-health and prohibition limbs.
- **C:** Incorrect: the proposition "It concerns animal husbandry and cattle breeds." fails against the controlling rule. Article 47 has both welfare/public-health and prohibition limbs.
- **D:** Correct: Article 47 has both welfare/public-health and prohibition limbs. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: Article 47 combines nutrition, living standards, public health and a qualified prohibition direction.

Q25. Which use of a named critic is most defensible?

A. Use K.T. Shah's "pious superfluities" to introduce the no-remedy critique, then answer it with Article 37 duty, political sanction and interpretive force. B. Claim Ivor Jennings supported immediate judicial enforcement of every directive. C. Attribute "Conscience of the Constitution" to K.T. Shah. D. Treat N. Srinivasan's classification as part of constitutional text.

Answer: A.

- **A:** Correct: Named quotations add value only when accurately attributed and connected to an argument and counterargument. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Claim Ivor Jennings supported immediate judicial enforcement of every directive." fails against the controlling rule. Named quotations add value only when accurately attributed and connected to an argument and counterargument.
- **C:** Incorrect: the proposition "Attribute 'Conscience of the Constitution' to K.T. Shah." fails against the controlling rule. Named quotations add value only when accurately attributed and connected to an argument and counterargument.
- **D:** Incorrect: the proposition "Treat N. Srinivasan's classification as part of constitutional text." fails against the controlling rule. Named quotations add value only when accurately attributed and connected to an argument and counterargument.

Examiner trap: Named criticism earns marks only when answered through Article 37, institutions and delivery evidence.

Q26. Which explains why DPSP implementation varies across India?

A. Courts allocate identical budgets for every State. B. Many directives concern State/Concurrent fields, and fiscal, institutional and administrative capacity differs across States. C. Every DPSP must be implemented only by constitutional amendment. D. Article 37 bars States from making welfare laws.

Answer: B.

- **A:** Incorrect: the proposition "Courts allocate identical budgets for every State." fails against the controlling rule. Federal competence and capacity produce both innovation and unequal delivery.
- **B:** Correct: Federal competence and capacity produce both innovation and unequal delivery. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Every DPSP must be implemented only by constitutional amendment." fails against the controlling rule. Federal competence and capacity produce both innovation and unequal delivery.
- **D:** Incorrect: the proposition "Article 37 bars States from making welfare laws." fails against the controlling rule. Federal competence and capacity produce both innovation and unequal delivery.

Examiner trap: Federal variation explains uneven implementation but does not erase the constitutional direction.

Q27. Which matching is correct?

1. Article 43 - living wage and cottage industries
2. Article 43A - workers' participation in management
3. Article 43B - voluntary, autonomous, democratic and professionally managed co-operatives

A. 1 only B. 1 and 3 only C. 1, 2 and 3 D. 2 and 3 only

Answer: C.

- **A:** Incorrect: the proposition "1 only" fails against the controlling rule. The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.
- **B:** Incorrect: the proposition "1 and 3 only" fails against the controlling rule. The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.
- **C:** Correct: The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "2 and 3 only" fails against the controlling rule. The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.

Examiner trap: Articles 43, 43A and 43B test three different ideas: worker welfare, industrial participation and co-operative governance.

Q28. Parliament enacts a statute declaring that every privately owned urban flat is a material resource of the community, states that it implements every DPSP, and bars all court review. Which is the best constitutional assessment?

A. The declaration conclusively activates Article 31C. B. Article 31C protects it from every Fundamental Right because housing is welfare-related. C. Courts cannot question resource classification or basic structure. D. The law must show a genuine 39(b)/(c) nexus; not every private asset qualifies automatically; the surviving shield is only against Articles 14/19 and judicial review cannot be ousted.

Answer: D.

- **A:** Incorrect: the proposition "The declaration conclusively activates Article 31C." fails against the controlling rule. The hypothetical combines *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*. A welfare label is not constitutional proof.
- **B:** Incorrect: the proposition "Article 31C protects it from every Fundamental Right because housing is welfare-related." fails against the controlling rule. The hypothetical combines *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*. A welfare label is not constitutional proof.
- **C:** Incorrect: the proposition "Courts cannot question resource classification or basic structure." fails against the controlling rule. The hypothetical combines *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*. A welfare label is not constitutional proof.
- **D:** Correct: The hypothetical combines *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*. A welfare label is not constitutional proof. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: A legislative declaration cannot make a weak Article 39(b)/(c) nexus conclusive or exclude basic-structure review.

Q29. What is the most accurate DPSP-related significance of the Constitution (Fourth Amendment) Act, 1955?

A. It strengthened the property and land-reform protection architecture, including Article 31A changes and Ninth Schedule additions, during the early implementation conflict. B. It inserted Article 31C for every Directive Principle. C. It inserted Article 38(2) and Article 43B. D. It constitutionalised village panchayats in Part IX.

Answer: A.

- **A:** Correct: The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "It inserted Article 31C for every Directive Principle." fails against the controlling rule. The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third.
- **C:** Incorrect: the proposition "It inserted Article 38(2) and Article 43B." fails against the controlling rule. The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third.
- **D:** Incorrect: the proposition "It constitutionalised village panchayats in Part IX." fails against the controlling rule. The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third.

Examiner trap: The Fourth Amendment belongs to the land-reform/property-response phase; it did not insert Article 31C.

Q30. Which sequence best represents accountability for a non-justiciable Directive Principle?

A. Directive text -> automatic writ -> judicial budget -> uniform outcome B. Directive text -> competent law and appropriation -> administration -> audit, legislative scrutiny, public debate and elections C. Directive text -> executive announcement -> constitutional completion D. Directive text -> constitutional amendment in every case -> no subsequent review

Answer: B.

- **A:** Incorrect: the proposition "Directive text -> automatic writ -> judicial budget -> uniform outcome" fails against the controlling rule. Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries.
- **B:** Correct: Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Directive text -> executive announcement -> constitutional completion" fails against the controlling rule. Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries.
- **D:** Incorrect: the proposition "Directive text -> constitutional amendment in every case -> no subsequent review" fails against the controlling rule. Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries.

Examiner trap: Part IV accountability runs through law, budget, administration, audit, political debate and elections, not courts alone.

Q31. Which statement most precisely captures Article 51(c)?

A. It makes every treaty automatically enforceable as domestic law. B. It authorises courts to conclude treaties without executive action. C. It directs the State to foster respect for international law and treaty obligations in dealings of organised peoples, without itself making every treaty self-executing. D. It concerns only arbitration of international disputes.

Answer: C.

- **A:** Incorrect: the proposition "It makes every treaty automatically enforceable as domestic law." fails against the controlling rule. Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d).
- **B:** Incorrect: the proposition "It authorises courts to conclude treaties without executive action." fails against the controlling rule. Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d).
- **C:** Correct: Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d). This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "It concerns only arbitration of international disputes." fails against the controlling rule. Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d).

Examiner trap: Article 51(c) promotes respect for international law and treaty obligations; it does not make every treaty self-executing.

Q32. A statute claims to implement Article 39(b), but its stated resource connection is remote and it bars all judicial scrutiny. Which position is correct?

A. The statutory declaration conclusively activates Article 31C. B. Any welfare recital protects the law from every Fundamental Right. C. Article 31C ceased to exist after Minerva Mills. D. A court may test the real Article 39(b) nexus and basic-structure limits; Article 31C shields only a genuine implementing law from Articles 14 and 19.

Answer: D.

- **A:** Incorrect: the proposition "The statutory declaration conclusively activates Article 31C." fails against the controlling rule. Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield.
- **B:** Incorrect: the proposition "Any welfare recital protects the law from every Fundamental Right." fails against the controlling rule. Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield.
- **C:** Incorrect: the proposition "Article 31C ceased to exist after Minerva Mills." fails against the controlling rule. Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield.
- **D:** Correct: Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: Article 31C protects only genuine Article 39(b)/(c) laws against Articles 14 and 19; no broader immunity should be inferred.

PYQS AND ANSWER PRACTICE

Audited direct and routed PYQs

Mains PYQ 1. UPSC 2023 GS-II Q2 - Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India. (10 marks, 150 words)

Model answer. Article 39A's access-to-justice commitment is reinforced by Article 21 fair-procedure jurisprudence and implemented through the Legal Services Authorities Act, 1987.

Entitlement: Section 12 covers SC/ST members; trafficking or begar victims; women and children; persons with disability; disaster or atrocity victims; industrial workmen; persons in custody; and persons below the income ceiling prescribed by the appropriate government. Section 13 additionally requires a prima facie case.

NALSA's role: NALSA frames policy and coordinates State, High Court, District and Taluk-level bodies. The network provides advice, representation, drafting, litigation expenses, awareness and Lok Adalats. *M.H. Hoskot* and *Hussainara Khatoon* connect counsel to fair procedure; *Suhas Chakma* (2024) strengthens monitoring of prison legal-aid delivery.

Assessment and conclusion: The architecture is broad and decentralised, but low awareness, uneven panel-lawyer quality, weak client communication and disposal-centred metrics reduce effective access. NALSA should prioritise early advice, counsel-performance review, client feedback and local-language delivery so Article 39A becomes quality-assured access rather than nominal representation.

Why this earns marks: It answers both limbs, accurately lists section 12 categories, adds section 13, names the full institutional chain and two cases, assesses achievements and delivery limits, and gives a reform-oriented verdict within a 10-marker structure.

How to improve this answer: Replace one older case reference with *Suhas Chakma v. Union of India* (2024) and its Jail Visiting Lawyer/NALSA monitoring directions; compress the eligibility list into four clusters to preserve space for a sharper assessment.

Prelims PYQ 1. UPSC 2020 GS-I Q5 - Separation of judiciary

In India, separation of judiciary from the executive is enjoined by:

- A. the Preamble of the Constitution
- B. a Directive Principle of State Policy
- C. the Seventh Schedule
- D. conventional practice

Answer withheld pending official UPSC key.

Concept analysis: Article 50 in Part IV directs the State to separate the judiciary from the executive in the public services of the State. The local repository has the official question paper but no official 2020 key.

Prelims PYQ 2. UPSC 2020 GS-I Q8 - UDHR principles

Other than the Fundamental Rights, which parts of the Constitution reflect the principles and provisions of the Universal Declaration of Human Rights, 1948?

1. Preamble
 2. Directive Principles of State Policy
 3. Fundamental Duties
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 1, 2 and 3

Answer withheld pending official UPSC key.

Concept analysis: The Preamble's justice/liberty/equality/fraternity, Part IV's socio-economic commitments and Part IVA's dignity, tolerance and internationalist duties reflect UDHR values. "Reflect" does not mean verbatim or article-by-article incorporation.

Prelims PYQ 3. UPSC 2020 GS-I Q9 - Free legal services eligibility

In India, Legal Services Authorities provide free legal services to which of the following types of citizens?

1. Person with annual income below Rs 1,00,000
 2. Transgender person with annual income below Rs 2,00,000
 3. OBC member with annual income below Rs 3,00,000
 4. All senior citizens
- A. 1 and 2 only
 - B. 4 only
 - C. 2 and 3 only
 - D. 1 and 4 only

Answer withheld pending official UPSC key.

Concept analysis: The contemporaneous legal-services framework treated statements 1 and 2 as eligible. OBC status alone is not a section 12 category and all senior citizens are not automatically included nationally. Current-answer discipline is more important than memorising the old amounts: section 12 contains category eligibility plus an income route whose ceiling is prescribed by the appropriate government.

Prelims PYQ 4. UPSC 2020 GS-I Q12 - Welfare State

Which part of the Constitution of India declares the ideal of a Welfare State?

- A. Directive Principles of State Policy
- B. Fundamental Rights
- C. Preamble
- D. Seventh Schedule

Answer withheld pending official UPSC key.

Concept analysis: Part IV, especially Articles 38 and 39, supplies the welfare-state programme. The Preamble states justice goals, but the question asks the Part declaring the welfare-state ideal.

Prelims PYQ 5. UPSC 2020 GS-I Q18 - Part IV enforceability

With reference to Part IV, which statements are correct?

1. They shall be enforceable by courts.
 2. They shall not be enforceable by any court.
 3. The principles laid down in this Part are to influence law-making by the State.
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 2 and 3 only

Answer withheld pending official UPSC key.

Concept analysis: Article 37 expressly combines non-enforceability with the principles' fundamental governance status and State duty in law-making.

Prelims PYQ 6. UPSC 2021 GS-I Q91 - Concentration of wealth

Under the Indian Constitution, concentration of wealth violates:

- A. Right to Equality
- B. Directive Principles of State Policy
- C. Right to Freedom
- D. concept of Welfare

Answer withheld pending official UPSC key.

Concept analysis: Article 39(c) directs that the economic system should not result in concentration of wealth and means of production to the common detriment. The language is directive, not a standalone Fundamental Right violation.

Prelims PYQ 7. UPSC 2025 GS-I Q55 - Provision matched to constitutional location

Consider the following pairs:

1. Separation of judiciary from executive in State public services - Directive Principles of State Policy
2. Valuing and preserving the rich heritage of composite culture - Fundamental Duties
3. Prohibition of employment of children below fourteen years in factories - Fundamental Rights

How many pairs are correctly matched?

- A. Only one
- B. Only two
- C. All three
- D. None

Final official/local-official key verified: C.

Concept analysis: Pair 1 is Article 50 in Part IV; pair 2 is Article 51A(f) in Part IVA; pair 3 is Article 24 in Part III. The Set-A official local key scan was directly checked and records Q55 as C.

Six original Mains questions with complete model solutions

Original Q1 - "The Directive Principles are non-justiciable, but not non-binding." Explain. (10 marks, 150 words)

Model solution. Thesis: Article 37 denies direct judicial enforcement but declares DPSPs fundamental in governance and makes their application in law-making a State duty. Non-justiciability therefore concerns remedy, not constitutional insignificance.

Part IV supplies welfare purposes: Articles 38-39 address justice and distribution, while Articles 41-43 address assistance and labour dignity. Its primary sanction is democratic; Ambedkar expected governments to answer to the electorate.

Directives also shape enforceable law. Article 39A informed the Legal Services Authorities Act, 1987; Article 40 informed the 73rd Amendment; Articles 41 and 45 supported *Unni Krishnan*, Article 21A and the RTE Act. Courts may use DPSPs to interpret rights and reasonableness, and *Minerva Mills* treats Part III-Part IV harmony as basic structure.

Qualification: Courts cannot create the entire welfare budget or compel Article 44 solely from Part IV.

Conclusion: DPSPs operate through duty, legislation, interpretation and political accountability, not an automatic writ.

Why this earns marks: It states Article 37's complete rule, supplies named institutional and judicial evidence, and preserves the remedy-policy distinction.

How to improve this answer: Use the chain directive -> law -> institution -> enforceable legal floor, then close with the direct-remedy qualification.

Original Q2 - Examine the present constitutional scope of Article 31C after Property Owners Association (2024). (10 marks, 150 words)

Model solution. Thesis: Article 31C survives as a narrow distributive shield, not a general DPSP-supremacy clause.

The 25th Amendment protected laws giving effect to Article 39(b) or (c) against Articles 14, 19 and then Article 31, while attempting to make the legislative declaration conclusive. *Kesavananda Bharati* upheld the substantive shield but invalidated exclusion of judicial review. The 42nd Amendment extended protection to every DPSP; *Minerva Mills* struck that extension and made Part III-Part IV harmony part of the basic structure.

In *Property Owners Association* (5 November 2024), the nine-judge Bench confirmed that Article 31C, as upheld in *Kesavananda*, remains operative. Courts may test whether a law genuinely furthers Article 39(b)/(c). Some privately owned resources may qualify under Article 39(b), but not automatically; nature, scarcity, community impact and concentration are relevant.

Conclusion: The present shield is only against Articles 14 and 19; nexus review and basic-structure limits remain.

Why this earns marks: It gives the amendment-case sequence, exact rights shield, contextual private-resource rule and judicial-review caveat.

How to improve this answer: Write three subheads: objective, shield and review.

Original Q3 - Trace the evolution of the relationship between Fundamental Rights and Directive Principles. Has harmony replaced hierarchy? (15 marks, 250 words)

Model solution. Thesis: The constitutional journey moves from a simple priority rule toward structured harmony, but harmony does not mean that enforceable rights disappear before any welfare claim.

Conflict phase: In *Champakam Dorairajan* (1951), a directive could not override Article 29(2); the First Amendment responded through Article 15(4). *I.C. Golaknath* (1967) then held Fundamental Rights unamendable, restricting Parliament's capacity to implement Part IV.

Constituent response: The 24th Amendment affirmed amendment power. The 25th inserted Article 31C for laws implementing Article 39(b)/(c). *Kesavananda Bharati* (1973) upheld the limited shield but struck the judicial-review ouster and subjected amendment power to basic structure.

Attempted Part IV primacy: The 42nd Amendment extended 31C to all DPSP. *Minerva Mills* (1980) invalidated it: Parts III and IV are "two wheels," and their balance is basic structure. The goals of Part IV must be pursued through rights-compatible means.

Harmonising phase: *Unni Krishnan* used Articles 41/45/46 to illuminate Article 21; the 86th Amendment then inserted Article 21A. *I.R. Coelho* prevented post-1973 Ninth Schedule immunity from defeating basic structure.

Current precision: *Property Owners Association* (2024) confirms the original 39(b)/(c) shield, while rejecting automatic classification of every private asset as a community resource.

Verdict: Harmony has replaced crude hierarchy: rights remain enforceable constraints, directives supply distributive ends, amendment/legislation may reconcile them, and basic structure preserves judicial review and balance.

Why this earns marks: It traces the complete chronology, explains cause and effect, includes education and Ninth Schedule developments, states the exact 2024 position and gives a qualified answer to the final question.

How to improve this answer: Turn the chronology into five dated milestones and reserve a distinct final paragraph for the verdict: harmony governs constitutional design, while enforceable rights still control inconsistent ordinary law outside a valid Article 31C shield.

Original Q4 - Assess whether India's legal-services and Lok Adalat framework adequately realises Article 39A. (15 marks, 250 words)

Model solution. Thesis: India has created a deep statutory architecture for Article 39A, but effective equal justice depends on service quality and informed consent, not institutional count or disposal figures alone.

Architecture: The Legal Services Authorities Act, 1987 creates NALSA, State Authorities, Supreme Court/High Court Committees, District Authorities and Taluk Committees. Section 12 covers SC/ST members, trafficking/begar victims, women, children, persons with disability, disaster/atrocities victims, industrial workmen, persons in custody and those below prescribed income ceilings. Section 13 adds a prima facie-case test.

Services: The network supplies advice, representation, drafting, fees/documents, clinics and awareness. *M.H. Hoskot* and *Hussainara Khatoon* connect counsel to Article 21 fair procedure.

Lok Adalat contribution: Ordinary Lok Adalats consensually settle pending or pre-litigation disputes; awards are deemed decrees, final and non-appealable. Permanent Lok Adalats address pre-litigation public-utility disputes and may decide on merits after failed conciliation, subject to the statutory offence bar.

Gaps: Low awareness, weak lawyer-client communication, uneven panel quality, linguistic/digital exclusion and pressure for disposal can reduce substantive justice. Consent must not become coerced settlement.

Way forward: early advice, counsel-performance review, client feedback, local-language access, stronger Taluk clinics and outcome-based evaluation.

Conclusion: Article 39A is institutionally realised but not uniformly experienced; the next reform is quality assurance and last-mile trust.

Why this earns marks: It accurately separates eligibility, institutions, ordinary/Permanent Lok Adalat powers, Article 21 cases, achievement and implementation limits, and proposes reforms tied to the diagnosis.

How to improve this answer: Add *Suhas Chakma* (2024) as concrete prison-delivery evidence and organise the assessment under access, quality and consent; avoid spending more than one-third of the answer merely listing institutions.

Original Q5 - How far have Directive Principles transformed India from a police state into a welfare state? Critically evaluate. (20 marks, 250 words)

Model solution. Thesis: DPSPs have transformed the constitutional purpose and institutional reach of the Indian State, but uneven capacity and outcomes make the transition substantial rather than complete.

Constitutional change: Articles 38-39 establish justice, livelihood, distribution and anti-concentration; Articles 41-43 address assistance, humane work and living wages; Articles 45-48A extend the programme to childhood, weaker sections, health, agriculture and environment. Government is consequently judged not only by order and legality but also by social capability and distribution.

Institutional conversion: Land-reform protection through Articles 31A-31B supported redistribution, subject to *I.R. Coelho* review. Article 40 informed the 73rd Amendment; Article 39A produced the Legal Services Authorities Act, 1987 and NALSA. Articles 41/45 helped lead through *Unni Krishnan* to Article 21A and the RTE Act. Article 48A supports environmental legislation and Article 21 jurisprudence; Article 43B constitutionalises co-operative principles, while *Rajendra N. Shah* preserves federal limits. Maternity, wage and social-security laws provide further vehicles.

Critical limits: Enactment does not ensure delivery. Local bodies may lack funds and staff; legal-aid quality, labour protection, nutrition and environmental compliance vary across States. Electoral incentives can favour visible transfers over durable institutions, and federal fiscal inequality produces territorial gaps.

Welfare ends also remain rights-disciplined: *Minerva Mills* makes Part III-Part IV harmony basic structure, while *Property Owners Association* preserves only a narrow Article 31C shield.

Conclusion: India is constitutionally a welfare State, but fuller transformation requires funded local institutions, measurable service quality and rights-compatible implementation.

Why this earns marks: It combines constitutional purpose, named institutions, delivery mechanisms, federal limits and a graded degree verdict.

How to improve this answer: Group evidence under social floors, decentralisation and regulatory welfare rather than listing schemes.

Original Q6 - "Directive Principles are a constitutional compass, not a delivery guarantee." Evaluate the criticisms and continuing utility of Part IV. (20 marks, 250 words)

Model solution. Thesis: The metaphor is accurate if "compass" means binding constitutional direction rather than optional morality: Part IV guides legislation, interpretation and political accountability but cannot itself guarantee resources or outcomes.

Criticisms: K.T. Shah's "pious superfluities" and resource-dependent cheque attack the absence of a judicial remedy. T.T. Krishnamachari's "dustbin of sentiments" and N. Srinivasan's arrangement critique question coherence; Ivor Jennings saw pious aspirations and a dated Fabian inheritance. K. Santhanam warned of institutional and federal conflict.

These objections matter. Article 41 acknowledges economic-capacity limits; broad directives can invite symbolic legislation, selective implementation or judicial overreach. Health, agriculture, labour, local government and personal law also involve divided competence. Without budgets, staff and grievance systems, constitutional language may not alter lived outcomes.

Continuing utility: Article 37 nevertheless declares the principles fundamental and imposes a State duty. Ambedkar linked them to economic democracy and electoral sanction; Granville Austin treated Parts III and IV as the conscience of social revolution; B.N. Rau stressed educative value; M.C. Setalvad described them as guides to courts and State action.

Their institutional record is concrete: Article 39A produced NALSA; Article 40 informed constitutional local government; Articles 41/45 supported Article 21A; Article 48A shaped environmental law; Article 43B supports co-operative autonomy. *Minerva Mills* constitutionalises harmony, and *Property Owners Association* preserves a bounded distributive shield.

Conclusion: DPSPs are neither enforceable rights nor empty promises. They set constitutional ends and standards of justification; delivery still requires finance, federal coordination, capable institutions and Part III-compatible means.

Why this earns marks: It pairs named criticism with constitutional and institutional responses, then gives a qualified delivery verdict.

How to improve this answer: Pair each critique with one rebuttal and test implementation through funding, capacity and grievance correction.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Optional: Core above is independently answer-complete. This section deepens unfamiliar 15/20-mark questions without holding back any paper-essential content.

A. Positive constitutionalism

[ANALYSIS] Classical rights constitutionalism asks what the State must not do. Part IV asks what institutions and social conditions the State must create. India's Constitution is therefore simultaneously:

- anti-coercion through Fundamental Rights;
- anti-hierarchy through equality and Article 17;
- welfare-oriented through Part IV; and
- duty-oriented through Part IVA.

The advanced point is not that DPSP are "positive rights." It is that they supply positive constitutional **ends**, some of which later acquire enforceable form through amendment, legislation or Article 21.

B. Minimum floor versus full programme

[ANALYSIS] Courts can more credibly enforce:

- non-discrimination in access;
- a minimum fair-procedure entitlement;
- reasons and hearing;
- protection against starvation, bonded labour or denial of basic education; and
- statutory duties already enacted.

They are less institutionally suited to determine:

- entire welfare budgets;
- sector-wide wage or health design;
- sequencing among competing social investments; or
- continuous management of schools, hospitals and local bodies.

Advanced verdict: judicially enforce a constitutional/statutory floor; leave policy choice above that floor to accountable institutions, subject to evidence and review.

C. Article 31C as distributive constitutional review

[ANALYSIS] Article 31C is often misread as a conflict rule. It is better understood as a specialised distributive-review rule:

1. identify the 39(b)/(c) distributive objective;
2. verify the law's genuine nexus;
3. apply the limited Articles 14/19 shield;
4. preserve judicial review/basic structure; and
5. scrutinise whether the resource/common-good claim is contextually defensible.

Property Owners Association (2024) rejects ideological shortcuts: neither private title nor socialist rhetoric decides the case.

D. Ninth Schedule and welfare immunities

[ANALYSIS] Article 31B/Ninth Schedule historically protected land-reform and redistributive laws. *I.R. Coelho* makes clear that post-*Kesavananda Bharati* (1973) insertion cannot immunise damage to the basic structure. Therefore:

welfare objective -> constitutional protection may be available -> but basic-structure review remains.

This logic parallels Article 31C's survival without a review-ouster.

E. Federal welfare constitutionalism

[ANALYSIS] Many directives concern State or Concurrent fields: agriculture, public health, local government, personal law, labour and co-operatives. Variation is therefore structural, not accidental.

Advantages:

- policy experimentation;
- responsiveness to local conditions;
- linguistic/cultural accommodation.

Risks:

- unequal fiscal capacity;
- race to the bottom;
- fragmented entitlements;
- central conditions without adequate finance.

Rajendra N. Shah is the doctrinal warning: even a desirable co-operative reform must respect State ratification and legislative fields.

F. UCC as a design problem, not a slogan

[ANALYSIS] A mature Article 44 answer distinguishes five levels:

1. constitutional aspiration;
2. legislative competence under Entry 5;
3. rights scrutiny under Articles 14, 15, 21, 25 and 26;
4. policy choice between codification, opt-in law, targeted reform and common code; and
5. transition design: existing marriages/succession, registration, conflict of laws, customary rights and institutional capacity.

[LIMIT] "Uniform" need not mean mechanically identical treatment where relevant differences require accommodation. Conversely, "diversity" cannot immunise sex-based subordination.

G. Outcome constitutionalism

[ANALYSIS] Part IV evaluation should move beyond number of Acts:

Input	Output	Outcome	Constitutional test
Budget/law	schools, clinics, lawyers, local institutions	learning, health, justice access, autonomy	equality, dignity, common good and non-exclusion

An Act may formally implement a directive yet fail substantively because of vacancies, inaccessible procedures, weak local finance or discriminatory delivery.

H. Novel-hypothetical method

For any new welfare, redistribution, UCC, labour or co-operative measure:

1. identify the exact DPSP and clause;
2. identify legislative competence and federal procedure;
3. determine whether a Fundamental Right is burdened;
4. test proportionality/non-arbitrariness unless Article 31C genuinely applies;
5. if 31C is invoked, verify the 39(b)/(c) nexus and preserve judicial review;
6. identify statute, institution, budget and grievance route;
7. separate enactment from implementation;
8. label current litigation/status honestly; and
9. conclude with the narrowest constitutionally sustainable route.

CONSOLIDATED REGISTER NOTES

Part IV architecture and constitutional identity

- Part IV = Articles 36-51.
- Source: Irish Constitution of 1937; Irish model drew from Spain.
- Ambedkar analogy: Instrument of Instructions under Government of India Act, 1935, now directed to democratic legislature/executive.
- Article 36: State has Part III/Article 12 meaning.
- Article 37 three-part formula: **not enforceable by court -> fundamental in governance -> State duty in law-making.**
- Welfare state replaces police-state orientation: justice, capability, dignity and distribution become constitutional purposes.
- Non-justiciability preserves sequencing and institutional competence; it does not mean optionality.

- Main sanction: political/public opinion, legislative accountability and elections; secondary force: interpretation and reasonableness.

Reasons for non-justiciability and force chain

- Founding constraints: limited finance, diversity/backwardness, new State's competing burdens, need to choose order/time/place/mode.
- Direct writ merely for non-implementation: ordinarily unavailable.
- Court may use DPSP to interpret FR/statute, identify reasonableness and enforce a statutory/rights floor.
- Full chain: directive -> competence -> legislation -> budget -> institution -> grievance/audit -> electoral/judicial accountability.

Articles 38 and 39 rapid recall

Provision	Keyword
38(1)	social order with social/economic/political justice
38(2)	minimise inequalities in income, status, facilities, opportunities
39(a)	adequate livelihood
39(b)	material resources -> common good
39(c)	no wealth/means-of-production concentration to common detriment
39(d)	equal pay for equal work
39(e)	worker/child health; no economically forced unsuitable avocation
39(f)	child development in freedom/dignity; protection from exploitation/abandonment

Memory: L-R-C-P-H-C = Livelihood, Resources, Concentration, Pay, Health, Children.

Articles 39A to 43B rapid recall

- 39A: equal justice and free legal aid.
- 40: village panchayats as units of self-government.
- 41: work, education, public assistance **within economic capacity and development**.
- 42: humane work conditions and maternity relief.
- 43: living wage, decent life, leisure/culture + rural cottage industries.
- 43A: worker participation in management.
- 43B: voluntary formation, autonomous functioning, democratic control, professional management of co-operatives.
- Close pair: 43 = worker welfare/cottage economy; 43A = industrial participation; 43B = co-operative governance.

Articles 44 to 51 rapid recall

- 44: endeavour for UCC for citizens throughout India.
- 45: early childhood care/education until six.
- 46: educational/economic interests of weaker sections, especially SC/ST; protection from injustice/exploitation.
- 47: nutrition + living standard + public health as primary duties; prohibition of injurious intoxicants except medicinal use.
- 48: scientific agriculture/animal husbandry + breed preservation + cattle-slaughter direction.
- 48A: environment, forests, wildlife.
- 49: nationally important monuments/places/objects declared by/under Parliamentary law.
- 50: separate judiciary from executive in State public services.
- 51: peace/security; just/honourable relations; respect international law/treaties; arbitration.

Scholarly classification with overlap

Socialistic	Gandhian	Liberal-intellectual
38, 39, 39A, 41, 42, 43, 43A, 47	40, 43, 43B, 46, 47, 48	44, 45, 48, 48A, 49, 50, 51

- Classification is not constitutional text.
- Overlaps: 43, 47, 48; Article 46 also has distributive/Gandhian dimensions.
- Exam rule: Article text first, taxonomy second.

Amendment ledger

Amendment	Part IV effect
42nd, 1976	39(f), 39A, 43A, 48A
44th, 1978	38(2)
86th, 2002	Article 21A + recast 45
97th, 2011	43B + Part IXB + co-operative element in 19(1)(c)

- *Rajendra N. Shah* (2021): Part IXB invalid for State co-operatives for lack of ratification; operative for multi-State co-operatives; Article 43B remains.

FR-DPSP chronology

1. *Champakam Dorairajan* (1951): FR prevail in conflict -> First Amendment/15(4), 31A and 31B.
2. Fourth Amendment (1955): strengthened early land-reform/property protection; did not create Article 31C.
4. *I.C. Golaknath* (1967): FR unamendable.
3. 24th 1971: amendment power affirmed.
5. 25th 1971: Article 31C for 39(b)/(c) + attempted review-ouster.
6. *Kesavananda Bharati* (1973): basic structure; shield upheld; review-ouster invalid.
7. 42nd 1976: 31C extended to all DPSP.
8. *Minerva Mills* (1980): extension invalid; harmony/balance basic structure.
9. *Unni Krishnan* 1993 -> education through Article 21.
10. 86th Amendment 2002 -> Article 21A.
11. *I.R. Coelho* 2007 -> post-24 April 1973 Ninth Schedule laws reviewable for basic-structure damage.
11. *Property Owners Association* (2024) -> original 31C survives narrowly.

Current Article 31C control

- Genuine 39(b)/(c) law: shield against Articles 14 and 19.
- No shield for every DPSP.
- Court reviews real nexus; legislative declaration not conclusive.
- Judicial review/basic structure remains.
- Private resource can qualify, but not automatically.
- Resource factors: nature, community impact, scarcity, concentration, common good/public trust.
- Do not write "FR always prevail"; write enforceable-right primacy qualified by harmony, amendment power and narrow 31C.

Implementation evidence bank

Directive	Evidence	Qualification
38/39	land reform; early amendments; 31A/31B	post-1973 Ninth Schedule review
40	73rd Amendment	incomplete 3F devolution
urban welfare	74th Amendment	Article 40 text is village-specific
39A	LSA Act 1987; NALSA; Lok Adalat	awareness/counsel quality
41/45	86th Amendment; RTE Act 2009	learning/ECCE gaps
42/43/43A	wage, maternity, social-security and industrial-relations legislation	State rules/compliance/informality
46	protective discrimination/welfare law	outcome debate belongs to FR/Social Justice
47	NFSA 2013; health/nutrition systems; prohibition laws	State capacity and liberty/revenue trade-offs
48A	Water 1974, Air 1981, EPA 1986, NGT 2010	enforcement gap
49	AMASR Act 1958; ASI	conservation-development conflict
43B	97th Amendment; co-operative laws	federal/capture issues
50	separation of judicial/executive magistracy	subordinate-judiciary capacity
51	UN/treaty practice; Arbitration Act 1996	treaties not automatically self-executing

NALSA and free legal aid

- Constitutional base: 39A; enforceable fair-procedure link: Article 21, *M.H. Hoskot, Hussainara Khatoon*.
- Statute: Legal Services Authorities Act, 1987.
- Levels: NALSA -> SLSA/court committees -> DLSA -> Taluk committee.
- Section 12: SC/ST; trafficking/begar victim; woman/child; disability; disaster/violence/atrocity victim; industrial workman; custody; prescribed-income route.
- Section 13: prima facie case; income affidavit generally sufficient unless disbelieved.
- No single national income ceiling.
- Services: advice, lawyer, drafting, fees/documents, clinics, awareness, entitlements and ADR.
- Assessment: wide architecture; uneven awareness, quality, communication, follow-up and outcome measurement.

Lok Adalat firewall

Ordinary Lok Adalat	Permanent Lok Adalat
pending or pre-litigation	pre-litigation public utility
conciliator only	conciliation then limited merits decision
settlement/consent essential	may decide after failed settlement if not offence
failed pending case returns to court	statutory decision follows
award deemed decree, final/binding, no appeal	award deemed decree, final/binding; no original suit/application/execution challenge

- Non-compoundable offence: outside ordinary jurisdiction.
- Do not equate "no appeal" with identical powers.

Article 44/UCC answer controls

- Exact text: State shall endeavour; citizens; throughout India.
- Legislative field: Concurrent List Entry 5.
- Rights matrix: 14/15 equality + 21 autonomy/dignity + 25/26 religion; 25(2) reform power.

- Cases: *Shah Bano*, *Sarla Mudgal*, *John Vallamattom* = holdings plus legislative observations; *Shayara Bano* = instant triple talaq, not UCC.
- Never say courts ordered UCC.
- Reform routes: community codification; Special Marriage Act opt-in; targeted equality reform; common code.
- Goa: common-law example with exceptions; not perfectly uniform.
- 21st Law Commission 2018: neither necessary nor desirable at that stage; reform discriminatory family law.
- 22nd Commission 2023: public consultation; no final recommendation claimed.
- Current-policy rule: use only an operative Gazette and do not treat one State model as national implementation.

Directives outside Part IV

- Article 335: SC/ST service claims consistent with efficiency, with constitutional provisos.
- Article 350A: mother-tongue primary instruction for linguistic minorities; Presidential directions possible.
- Article 351: Union duty to develop/spread Hindi for composite culture.
- Study label only; do not relocate them into Part IV or Article 37.

Criticism, defence and graded verdicts

- K.T. Shah: pious superfluities/resource cheque -> answer with Article 37 duty and political sanction.
- T.T. Krishnamachari: dustbin of sentiments -> answer with concrete constitutionalisation.
- Wheare/Jennings: aspiration/moral homily -> answer with interpretation, statutes and institutions.
- N. Srinivasan: illogical arrangement -> accept overlap, reject rigid taxonomy.
- K. Santhanam: institutional conflict -> federal competence/finance/coordination.
- Ambedkar: economic democracy and electorate.
- Austin: conscience/social revolution.
- B.N. Rau: educative moral precepts.
- Setalvad: instructions, beacon to courts, background to State action, Preamble amplification.
- Final verdict: **constitutional compass + duty + institutional conversion; not a self-executing delivery guarantee.**

Prelims trap wall

- Ireland, not USA; Spain is the antecedent.
- Non-justiciable, not non-binding.
- Classification is scholarly, not constitutional.
- 39(b) resources/common good; 39(c) anti-concentration.
- 41 contains economic-capacity limit.
- 43/43A/43B are different.
- 45 now below six; 21A covers 6-14.
- 48 versus 48A.
- Article 50 = separation of judiciary.
- 31C survives only for 39(b)/(c), against 14/19, with review.
- Not every private asset is a community resource.
- Article 43B remains after *Rajendra N. Shah*.
- Ordinary Lok Adalat cannot adjudicate after failed settlement.
- No single national legal-aid income ceiling.
- Courts did not order UCC.

Mains answer spine

1. Thesis answering the directive.
2. Exact Article/Article 37 status.

3. Amendment, case, statute and institution.
4. Evidence formula: claim -> named evidence -> what it proves -> qualification.
5. Mechanism: competence -> budget -> institution -> outcome.
6. Counterpoint: rights, federalism, resources, incentives, capacity.
7. Current control only where verified.
8. Graded conclusion: harmony, workable delivery and measurable outcomes.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Part IV constitutional architecture and origin

PART IV: DIRECTIVE PRINCIPLES OF STATE POLICY, ARTICLES 36-51

ORIGIN -> Irish Constitution of 1937; Irish model had a Spanish antecedent

INDIAN DESIGN -> Ambedkar's 1935 Instrument-of-Instructions analogy,
now addressed to elected legislatures and executives

ARTICLE 36 -> State has the Part III / Article 12 meaning

ARTICLE 37 -> not enforceable by courts

-> fundamental in governance

-> State duty to apply in making laws

CORE RULE: non-justiciable != optional; constitutional duty != automatic writ remedy.

ASCII MASTER FLOW - PANEL 2/12: Articles 38 and 39(a)-(f): distributive core

ARTICLE 38

38(1) welfare through social, economic and political justice

38(2) minimise inequalities: income + status + facilities + opportunities

ARTICLE 39

(a) adequate livelihood for citizens, men and women equally

(b) material resources distributed to subserve common good

(c) no concentration of wealth/means of production to common detriment

(d) equal pay for equal work for men and women

(e) worker/child health protected; no unsuitable avocation from economic need

(f) childhood in freedom/dignity; protection from exploitation/abandonment

TRAP: 39(b) distribution and 39(c) anti-concentration are related, not identical.

ASCII MASTER FLOW - PANEL 3/12: Articles 39A-43B: institutions, work and democratic economy

39A -> equal justice + free legal aid

40 -> village panchayats as units of self-government

41 -> work, education and public assistance

EXPRESS LIMIT: within economic capacity and development

42 -> just/humane work conditions + maternity relief

43 -> living wage + decent life + leisure/culture + rural cottage industries

43A -> worker participation in industrial management

43B -> voluntary formation + autonomy + democratic control

+ professional management of co-operative societies

CLOSE PAIR: 43 worker welfare/cottage economy | 43A participation | 43B co-operatives.

ASCII MASTER FLOW - PANEL 4/12: Articles 44-51: reform, capability, ecology and peace

44 -> State endeavour for a Uniform Civil Code for citizens throughout India
45 -> early childhood care and education until completion of six years
46 -> weaker sections, especially SC/ST; education/economy + anti-exploitation
47 -> nutrition + living standard + public health; qualified prohibition direction
48 -> scientific agriculture/animal husbandry + cattle protection
48A -> environment + forests + wildlife
49 -> nationally important monument/place/object declared by/under Parliamentary law
50 -> separate judiciary from executive in State public services
51 -> (a) peace/security (b) just/honourable relations
(c) respect international law/treaties (d) arbitration

TRAP: Article 51(c) is not automatic domestic incorporation of every treaty.

ASCII MASTER FLOW - PANEL 5/12: Classification and direct Part IV amendments

TEXTBOOK CLASSIFICATION - NOT CONSTITUTIONAL LABELS

SOCIALISTIC -> 38, 39, 39A, 41, 42, 43, 43A, 47

GANDHIAN -> 40, 43, 43B, 46, 47, 48

LIBERAL-INTELLECTUAL -> 44, 45, 48, 48A, 49, 50, 51

OVERLAPS -> 43, 46, 47 and 48

DIRECT PART IV CHANGE

42nd (1976) -> 39(f) recast; 39A, 43A, 48A inserted

44th (1978) -> 38(2) inserted

86th (2002) -> Article 21A inserted; Article 45 recast below six

97th (2011) -> Article 43B inserted

EXAM RULE: exact Article first; category second.

ASCII MASTER FLOW - PANEL 6/12: FR-DPSP phases and amendment response

1951 CHAMPAKAM -> FR prevails in direct conflict; First Amendment response

1951 FIRST -> 15(4), 31A and 31B accommodation

1955 FOURTH -> strengthened land-reform/property protection architecture

1967 GOLAKNATH -> Parliament cannot abridge FR by amendment

1971 24TH -> amendment power affirmed

1971 25TH -> Article 31C for 39(b)/(c)

1973 KESAVANANDA -> amendment subject to basic structure;
31C shield survives, review-ouster fails

1976 42ND -> attempted extension of 31C to all DPSPs

1980 MINERVA MILLS -> extension invalid; Part III-IV harmony is basic structure

CURRENT DOCTRINE: harmony/balance, not permanent absolute supremacy of either Part.

ASCII MASTER FLOW - PANEL 7/12: Article 31C after Property Owners Association (2024)

STEP 1 -> Does the law genuinely implement Article 39(b) or 39(c)?

STEP 2 -> Is there a real and substantial nexus?

STEP 3 -> For 39(b), is the material resource 'of the community' contextually?

STEP 4 -> Does distribution subserve common good?

STEP 5 -> Apply shield against Articles 14 and 19

STEP 6 -> Preserve judicial review and basic-structure limits

PROPERTY OWNERS ASSOCIATION, 5 NOV 2024

some privately owned resources may qualify

not every private asset qualifies automatically

relevant context includes nature, scarcity, community impact and concentration

TRAP: welfare recital != conclusive 31C protection.

ASCII MASTER FLOW - PANEL 8/12: Governance value and implementation chain

DPSP TEXT

- > legislative competence
- > law and appropriation
- > rules, institutions and front-line capacity
- > grievance correction and judicial legality review
- > audit, legislative scrutiny, opposition, civil society and elections
- > measurable outcomes

USES

- legislature -> constitutional purpose for law
- executive -> policy priorities and administration
- judiciary -> rights/statute interpretation within institutional limits
- politics -> manifesto, budget and electoral accountability

LIMIT: a scheme or statute is an implementation vehicle, not proof of universal fulfilment.

ASCII MASTER FLOW - PANEL 9/12: Named implementation examples with honest limits

- 38/39 -> land reform + Articles 31A/31B | basic-structure review remains
- 39A -> Legal Services Authorities Act 1987 + NALSA | quality/awareness gaps
- 40 -> 73rd Amendment / Part IX | devolution depends on funds-functions-functionaries
- 41/45 -> Article 21A + RTE Act 2009 | below-six Article 45 remains; outcome gaps
- 42/43 -> maternity, wage and labour legislation | informality/enforcement limits
- 47 -> nutrition/public-health/prohibition laws | capacity and liberty trade-offs
- 48A -> environmental statutes | compliance and enforcement gaps
- 49 -> AMASR Act 1958 / ASI | conservation-development tension
- 50 -> judicial-executive separation reforms | capacity questions
- 51 -> treaty practice/arbitration legislation | no automatic self-execution

RULE: named evidence -> what it proves -> honest limitation.

ASCII MASTER FLOW - PANEL 10/12: Article 39A, NALSA and Lok Adalat firewall

ARTICLE 39A -> EQUAL JUSTICE + FREE LEGAL AID

- Article 21 link -> M.H. Hoskot; Hussainara Khatoon
- statute -> Legal Services Authorities Act 1987
- chain -> NALSA -> SLSA / court committees -> DLSA -> Taluk committee
- section 12 -> category or prescribed-income eligibility
- section 13 -> authority satisfied about prima-facie case

ORDINARY LOK ADALAT

- settlement/consent only; no merits adjudication after failure
- award deemed decree, final/binding, no appeal

PERMANENT LOK ADALAT

- pre-litigation public-utility dispute; conciliation first
- bounded merits decision after failure, if dispute does not relate to an offence.

ASCII MASTER FLOW - PANEL 11/12: Article 44 and location boundaries

ARTICLE 44

direction -> State shall endeavour; citizens; throughout India
field -> Concurrent List Entry 5
design -> equality/dignity + religion/pluralism + competence + transition
courts -> decide concrete disputes; observations do not enact a UCC
routes -> targeted reform | community codification | secular option | common code

OUTSIDE-PART-IV STUDY DIRECTIONS

Article 335 -> SC/ST service claims consistently with efficiency
Article 350A -> primary mother-tongue facilities for linguistic minorities
Article 351 -> Union duty to develop/spread Hindi

BOUNDARY: only Articles 36-51 are Part IV DPSPs; detailed FR is Topic 7,
Duties Topic 9 and amendment doctrine Topic 10.

ASCII MASTER FLOW - PANEL 12/12: Criticism, traps, PYQs and answer spine

CRITICISM -> no remedy | vague arrangement | resource dependence
| federal friction | judicial competence | symbolic compliance
RESPONSE -> Article 37 duty | institutional conversion | interpretation
| budgets/audit | elections | measurable outcomes

PYQ RAIL

2020 -> Article 50; UDHR reflection; legal-aid eligibility;
welfare State; Article 37 enforceability/law-making
2021 -> Article 39(c) concentration
2023 GS-II -> entitlement to free legal aid + role of NALSA
2025 -> Part matching; held final local-official key C

ANSWER SPINE

thesis -> exact Article -> amendment/case/law -> mechanism -> named evidence
-> rights/federal/fiscal qualification -> graded conclusion

VERDICT: constitutional compass and governance duty, not a self-executing delivery guarantee.